SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS

OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30

1. REQUISITION NUMBER	PAGE 1 OF 109

2. CONTRACT NO.	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE
			W9124921R0004	09-Dec-2020

7. FOR SOLICITATION INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER *(No Collect Calls)*	8. OFFER DUE DATE/LOCAL TIME
	DEVIN J. KNIGHT	706-791-1828	12:00 PM 12 Jan 2021

9. ISSUED BY	CODE	W91249
MICC - FORT GORDON 271 HERITAGE PARK LANE BLDG. 35200 FT GORDON GA 30905 TEL: 706-791-1800 FAX: 706-791-8651		

10. THIS ACQUISITION IS
- [ ] UNRESTRICTED OR [X] SET ASIDE: 100 % FOR:
- [ ] SMALL BUSINESS
- [ ] WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM
- [ ] HUBZONE SMALL BUSINESS
- [ ] EDWOSB
- NAICS: 611430
- [ ] SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS
- [X] 8(A)
- SIZE STANDARD: $12,000,000

11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED	12. DISCOUNT TERMS	13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)	13b. RATING
[ ] SEE SCHEDULE			14. METHOD OF SOLICITATION: [ ] RFQ [ ] IFB [X] RFP

15. DELIVER TO	CODE	W589GE	16. ADMINISTERED BY	CODE
W589GE COE J.B. LINDSEY JR 442ND SIGNAL BATTALION BUILDING 25801, COBB H FORT GORDON GA 30905 TEL: 706-791-9739 FAX:				

17a. CONTRACTOR/ OFFEROR	CODE	FACILITY CODE	18a. PAYMENT WILL BE MADE BY	CODE
TELEPHONE NO.				

- [ ] 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a. UNLESS BLOCK BELOW IS CHECKED [ ] SEE ADDENDUM

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/ SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	SEE SCHEDULE				

25. ACCOUNTING AND APPROPRIATION DATA	26. TOTAL AWARD AMOUNT (For Govt. Use Only)

- [ ] 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1. 52.212-4. FAR 52.212-3. 52.212-5 ARE ATTACHED. ADDENDA [ ] ARE [ ] ARE NOT ATTACHED
- [ ] 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA [ ] ARE [ ] ARE NOT ATTACHED

[X] 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 2 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.

[ ] 29. AWARD OF CONTRACT: REF. OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR	31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)

30b. NAME AND TITLE OF SIGNER *(TYPE OR PRINT)*	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER *(TYPE OR PRINT)* TEL: EMAIL:	31c. DATE SIGNED

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS (CONTINUED)

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/ SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	SEE SCHEDULE				

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE
	32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER ☐ PARTIAL ☐ FINAL	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT ☐ COMPLETE ☐ PARTIAL ☐ FINAL	37. CHECK NUMBER

38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY *(Print)*	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER	41c. DATE	42b. RECEIVED AT *(Location)*	
		42c. DATE REC'D *(YY/MM/DD)*	42d. TOTAL CONTAINERS

Section SF 1449 - CONTINUATION SHEET

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001		12	Months		

DoDD 8570 Compliance Training
FFP
The contractor shall provide all necessary management, supervision and other labor required to successfully perform non-personal DoDD 8570 Compliance Training Resident and Mobile Training support services in accordance with the Performance Work Statement (PWS) and other areas of the solicitation.
FOB: Destination
PSC CD: U008

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0002			Lot		

Other Direct Cost (ODC)
COST
Includes all supplies and materials, other than Travel, approved in advance by the Contracting Officer in accordance with PWS 1.6.14. Approved ODCs shall be reimbursed in accordance with FAR 31.205-26 and shall be a Not-to-Exceed Amount of $250,000.00. Profit, G&A and handling fees are not allowable.
FOB: Destination
PSC CD: U008

ESTIMATED COST

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0003			Lot		

Travel
FFP
Includes all Travel approved in advance by the Contracting Officer in accordance with PWS 1.6.13. Approved Travel costs shall be reimbursed in accordance with the Joint Travel Regulations, FAR 31.205-46 and shall be a Not-to-Exceed Amount of $250,000.00. Profit, G&A and handling fees are not allowable.
FOB: Destination
PSC CD: U008

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0004		1	Each		

Contract Manpower Reporting
FFP
Contractor is required to provide data on Contractor labor hours (including subcontractor labor hours) for performance of this contract IAW the PWS. The cost, if any, for providing this data shall be entered into the space provided at this CLIN. If no direct cost is associated with providing the data, enter “No Cost”. Instructions, including the Contractor and Subcontractor User Guides, are available at https://www.beta.sam.gov/.
FOB: Destination
PSC CD: U008

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1001		12	Months		

DoDD 8570 Compliance Training
FFP
The contractor shall provide all necessary management, supervision and other labor required to successfully perform non-personal DoDD 8570 Compliance Training Resident and Mobile Training support services in accordance with the Performance Work Statement (PWS) and other areas of the solicitation.
FOB: Destination
PSC CD: U008

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1002			Lot		

Other Direct Cost (ODC)
COST
Includes all supplies and materials, other than Travel, approved in advance by the Contracting Officer in accordance with PWS 1.6.14. Approved ODCs shall be reimbursed in accordance with FAR 31.205-26 and shall be a Not-to-Exceed Amount of $265,750.00. Profit, G&A and handling fees are not allowable.
FOB: Destination
PSC CD: U008

ESTIMATED COST

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1003			Lot		

Travel
FFP
Includes all Travel approved in advance by the Contracting Officer in accordance with PWS 1.6.13. Approved Travel costs shall be reimbursed in accordance with the Joint Travel Regulations, FAR 31.205-46 and shall be a Not-to-Exceed Amount of $265,750.00. Profit, G&A and handling fees are not allowable.
FOB: Destination
PSC CD: U008

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1004		1	Each		

Contract Manpower Reporting
FFP
Contractor is required to provide data on Contractor labor hours (including subcontractor labor hours) for performance of this contract IAW the PWS. The cost, if any, for providing this data shall be entered into the space provided at this CLIN. If no direct cost is associated with providing the data, enter “No Cost”. Instructions, including the Contractor and Subcontractor User Guides, are available at https://www.beta.sam.gov/.
FOB: Destination
PSC CD: U008

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2001		12	Months		

DoDD 8570 Compliance Training
FFP
The contractor shall provide all necessary management, supervision and other labor required to successfully perform non-personal DoDD 8570 Compliance Training Resident and Mobile Training support services in accordance with the Performance Work Statement (PWS) and other areas of the solicitation.
FOB: Destination
PSC CD: U008

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2002			Lot		

Other Direct Cost (ODC)
COST
Includes all supplies and materials, other than Travel, approved in advance by the Contracting Officer in accordance with PWS 1.6.14. Approved ODCs shall be reimbursed in accordance with FAR 31.205-26 and shall be a Not-to-Exceed Amount of $271,050.00. Profit, G&A and handling fees are not allowable.
FOB: Destination
PSC CD: U008

ESTIMATED COST

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2003			Lot		

Travel
FFP
Includes all Travel approved in advance by the Contracting Officer in accordance with PWS 1.6.13. Approved Travel costs shall be reimbursed in accordance with the Joint Travel Regulations, FAR 31.205-46 and shall be a Not-to-Exceed Amount of $271,050.00. Profit, G&A and handling fees are not allowable.
FOB: Destination
PSC CD: U008

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2004		1	Each		

Contract Manpower Reporting
FFP
Contractor is required to provide data on Contractor labor hours (including subcontractor labor hours) for performance of this contract IAW the PWS. The cost, if any, for providing this data shall be entered into the space provided at this CLIN. If no direct cost is associated with providing the data, enter “No Cost”. Instructions, including the Contractor and Subcontractor User Guides, are available at https://www.beta.sam.gov/.
FOB: Destination
PSC CD: U008

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
3001		12	Months		

DoDD 8570 Compliance Training
FFP
The contractor shall provide all necessary management, supervision and other labor required to successfully perform non-personal DoDD 8570 Compliance Training Resident and Mobile Training support services in accordance with the Performance Work Statement (PWS) and other areas of the solicitation.
FOB: Destination
PSC CD: U008

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
3002			Lot		

Other Direct Cost (ODC)
COST
Includes all supplies and materials, other than Travel, approved in advance by the Contracting Officer in accordance with PWS 1.6.14. Approved ODCs shall be reimbursed in accordance with FAR 31.205-26 and shall be a Not-to-Exceed Amount of $276,475.00. Profit, G&A and handling fees are not allowable.
FOB: Destination
PSC CD: U008

ESTIMATED COST

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
3003			Lot		

Travel
FFP
Includes all Travel approved in advance by the Contracting Officer in accordance with PWS 1.6.13. Approved Travel costs shall be reimbursed in accordance with the Joint Travel Regulations, FAR 31.205-46 and shall be a Not-to-Exceed Amount of $276,475.00. Profit, G&A and handling fees are not allowable.
FOB: Destination
PSC CD: U008

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
3004		1	Each		

Contract Manpower Reporting
FFP
Contractor is required to provide data on Contractor labor hours (including subcontractor labor hours) for performance of this contract IAW the PWS. The cost, if any, for providing this data shall be entered into the space provided at this CLIN. If no direct cost is associated with providing the data, enter “No Cost”. Instructions, including the Contractor and Subcontractor User Guides, are available at https://www.beta.sam.gov/.
FOB: Destination
PSC CD: U008

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
4001		12	Months		

DoDD 8570 Compliance Training
FFP
The contractor shall provide all necessary management, supervision and other labor required to successfully perform non-personal DoDD 8570 Compliance Training Resident and Mobile Training support services in accordance with the Performance Work Statement (PWS) and other areas of the solicitation.
FOB: Destination
PSC CD: U008

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
4002			Lot		

Other Direct Cost (ODC)
COST
Includes all supplies and materials, other than Travel, approved in advance by the Contracting Officer in accordance with PWS 1.6.14. Approved ODCs shall be reimbursed in accordance with FAR 31.205-26 and shall be a Not-to-Exceed Amount of $282,000.00. Profit, G&A and handling fees are not allowable.
FOB: Destination
PSC CD: U008

ESTIMATED COST

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
4003			Lot		

Travel
FFP
Includes all Travel approved in advance by the Contracting Officer in accordance with PWS 1.6.13. Approved Travel costs shall be reimbursed in accordance with the Joint Travel Regulations, FAR 31.205-46 and shall be a Not-to-Exceed Amount of $282,000.00. Profit, G&A and handling fees are not allowable.
FOB: Destination
PSC CD: U008

NET AMT

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
4004		1	Each		

Contract Manpower Reporting
FFP
Contractor is required to provide data on Contractor labor hours (including subcontractor labor hours) for performance of this contract IAW the PWS. The cost, if any, for providing this data shall be entered into the space provided at this CLIN. If no direct cost is associated with providing the data, enter “No Cost”. Instructions, including the Contractor and Subcontractor User Guides, are available at https://www.beta.sam.gov/.
FOB: Destination
PSC CD: U008

NET AMT

INSPECTION AND ACCEPTANCE TERMS

Supplies/services will be inspected/accepted at:

CLIN	INSPECT AT	INSPECT BY	ACCEPT AT	ACCEPT BY
0001	Destination	Government	Destination	Government

0002	Destination	Government	Destination	Government
0003	Destination	Government	Destination	Government
0004	Destination	Government	Destination	Government
1001	Destination	Government	Destination	Government
1002	Destination	Government	Destination	Government
1003	Destination	Government	Destination	Government
1004	Destination	Government	Destination	Government
2001	Destination	Government	Destination	Government
2002	Destination	Government	Destination	Government
2003	Destination	Government	Destination	Government
2004	Destination	Government	Destination	Government
3001	Destination	Government	Destination	Government
3002	Destination	Government	Destination	Government
3003	Destination	Government	Destination	Government
3004	Destination	Government	Destination	Government
4001	Destination	Government	Destination	Government
4002	Destination	Government	Destination	Government
4003	Destination	Government	Destination	Government
4004	Destination	Government	Destination	Government

DELIVERY INFORMATION

CLIN	DELIVERY DATE	QUANTITY	SHIP TO ADDRESS	DODAAC / CAGE
0001	POP 01-MAR-2021 TO 28-FEB-2022	N/A	W589GE COE J.B. LINDSEY JR 442ND SIGNAL BATTALION BUILDING 25801, COBB H FORT GORDON GA 30905 706-791-9739 FOB: Destination	W589GE
0002	POP 01-MAR-2021 TO 28-FEB-2022	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	W589GE
0003	POP 01-MAR-2021 TO 28-FEB-2022	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	W589GE
0004	POP 01-MAR-2021 TO 28-FEB-2022	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	W589GE
1001	POP 01-MAR-2022 TO 28-FEB-2023	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	W589GE
1002	POP 01-MAR-2022 TO 28-FEB-2023	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	W589GE
1003	POP 01-MAR-2022 TO 28-FEB-2023	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	W589GE

1004	POP 01-MAR-2022 TO 28-FEB-2023	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	W589GE
2001	POP 01-MAR-2023 TO 29-FEB-2024	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	W589GE
2002	POP 01-MAR-2023 TO 29-FEB-2024	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	W589GE
2003	POP 01-MAR-2023 TO 29-FEB-2024	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	W589GE
2004	POP 01-MAR-2023 TO 29-FEB-2024	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	W589GE
3001	POP 01-MAR-2024 TO 28-FEB-2025	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	W589GE
3002	POP 01-MAR-2024 TO 28-FEB-2025	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	W589GE
3003	POP 01-MAR-2024 TO 28-FEB-2025	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	W589GE
3004	POP 01-MAR-2024 TO 28-FEB-2025	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	W589GE
4001	POP 01-MAR-2025 TO 28-FEB-2026	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	W589GE
4002	POP 01-MAR-2025 TO 28-FEB-2026	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	W589GE
4003	POP 01-MAR-2025 TO 28-FEB-2026	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	W589GE
4004	POP 01-MAR-2025 TO 28-FEB-2026	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	W589GE

PWS

Performance Work Statement

DoDD 8140/8570.01-M Compliance: Resident and Mobile Training

U.S. ARMY CYBER CENTER OF EXCELLENCE (CyberCoE)
FORT GORDON, GA 30905-5000

PART 1
GENERAL INFORMATION

1. General: This is a non-personal services contract to provide DoDD 8140/8570.01-M Compliance: Resident and Mobile Training. The contract shall provide program management,

network management, administrative and instruction development support in the preparation, review and update of technical documentation for training courses at up-to six locations. This will also include Mobile Training Teams (MTTs) at up-to four locations. The Government shall not exercise any supervision or control over the contract service providers performing the services herein. Such contract service providers shall be accountable solely to the Contractor who, in turn is responsible to the Government

1.1 Description of Services/Introduction: The DoDD 8140/8570.01-M Compliance: Resident and Mobile training provides warfighters qualified Cyber Security (CS) personnel. A list of DoD approved IA baseline certifications aligned to each category and level of the IA Workforce can be found at https://public.cyber.mil/cw/cwmp/dod-approved-8570-baseline-certifications/. The contractor shall provide all personnel, equipment, supplies, transportation, tools, materials, supervision, and other items and non-personal services necessary to provide instruction and support services in a classroom environment as defined in this Performance Work Statement except for those items specified as government furnished property and services. The contractor shall perform to the standards in this contract.

1.2 Background: The DoDD 8140/8570.01-M Compliance: Resident and Mobile training contract has provided continual support to the Army Chief Information Officer/G6 (CIO/G6) Cyber Security (CS) workforce training and certification requirements for Information Assurance Technician (IAT), Information Assurance Manager (IAM), Computer Network Defense – Service Provider (CND-SP), and Information Assurances System Architect Engineer (IASAE) levels for IA personnel, per DoD 8570.01-M, Incorporating Change 4, 11/10/2015. The program trains over 4,000 students in classrooms and another 100,000 students via distance learning, annually. https://cs.signal.army.mil/docs/857001m.pdf The DoDD 8140/8570.01-M Compliance: Resident and Mobile training requirements are part of the Information Technology (IT) acquisition development process. It provides guidance and procedures for the training, certification, and management of the DoD workforce conducting Cyber Security (CS) functions in assigned duty positions.

1.3 Objectives: The United States Army Cyber Center of Excellence requires contractor support for DoDD 8140/8570.01-M Compliance: Resident and Mobile Training courseware development, program management, administrative support and instruction for the Signal/Cyber workforce at six fixed locations and a Mobile Transition Team. The training shall ensure that the Army workforce is educated and trained in CS requirements and practices.

1.4 Scope: Contracted Instructor/Writer personnel shall support the Signal School in revision and develop new curriculum by providing a planning timeline, conducting research and development for the DoDD 8140/8570.01-M Compliance: Resident and Mobile training. The effort shall include duties in support of the daily maintenance of labs and classrooms, cyber security instruction, course development, course maintenance, network engineer, administrative and MTT coordination. The services are required to support training and education for the Army's Cyber Security (CS) Workforce. The student population includes personnel performing CS duties and personnel receiving cyber security training during Army career progression courses.

1.5 Period of Performance: The period of performance shall be for Base Year plus four option years. The Period of Performance reads as follows:

Base Year -	1 MAR 2021 – 28 FEB 2022 (12 months)
OY1 –	1 MAR 2022 – 28 FEB 2023 (12 months)
OY2 –	1 MAR 2023 – 29 FEB 2024 (12 months)
OY3 –	1 MAR 2024 – 28 FEB 2025 (12 months)
OY4 –	1 MAR 2025 – 28 FEB 2026 (12 months)

1.6 General Information:

1.6.1 Quality Assurance: The government shall evaluate the contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan. This plan is primarily focused on what the Government must do to ensure that the contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and the minimum acceptable defect rate(s).

1.6.2 Quality Control: Quality Control is the responsibility of the contractor (see FAR 52.246-1 Contractor Inspection Requirements). The Contractor shall develop, implement and maintain an effective Quality Control System which includes a written Quality Control Plan (QCP). The QCP shall implement standardized procedure/methodology for monitoring and documenting contract performance to ensure all contract requirements are met. The Contractors' QCP shall contain a systematic approach to monitor operations to ensure acceptable services/products are provided to the Government. The QCP as a minimum shall address continuous process improvement; procedures for scheduling, conducting and documentation of inspection; discrepancy identification and correction; corrective action procedures to include procedures for addressing Government discovered non-conformances; procedures for root cause analysis to identify the root cause and root cause corrective action to prevent re-occurrence of discrepancies; procedures for trend analysis; procedures for collecting and addressing customer feedback/complaints. After award, the final QCP shall be delivered within 30 days of start date and within 5 working days when changes are made thereafter. After acceptance of the quality control plan the contractor shall receive the contracting officer's acceptance in writing of any proposed change to his QCP.

1.6.3 Federal Government Holidays: The contractor is not expected to work on the Federal holidays listed below:

New Year's Day	1st day of January
Martin Luther King Jr.'s Birthday	3rd Monday of January
Presidents Day	3rd Monday of February
Memorial Day	last Monday of May
Independence Day	4th day of July
Labor Day	1st Monday of September
Columbus Day	2nd Monday of October
Veterans Day	11th day of November
Thanksgiving Day	4th Thursday of November
Christmas Day	25th day of December

1.6.4 Hours of Operation: The contractor is responsible for conducting business, between the hours of 0800 and 1700 Monday thru Friday except Federal holidays or when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government directed facility closings. However, these operating hours and days may vary based on the requirements of the government. Contract personnel work schedules may be "flexed" to meet manpower requirements while still adhering to the standard five day work week. The contractor is expected to work on training holidays and building access will be provided, as required. For other than firm fixed price contracts, the contractor will not be reimbursed when the government facility is closed for the above reasons. The Contractor shall at all times maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS when the Government facility is not closed for the above reasons. When hiring personnel, the Contractor shall keep in mind that the stability and continuity of the workforce are essential. The Contractor shall fill vacant position(s) within **10 working days** of notification to the Government (COR).

1.6.5 Place of Performance: The work to be performed under this contract will be performed at Fort Gordon, GA; Joint Base Lewis McChord (JBLM), WA; Fort Hood, TX; Camp Robinson, AR; Fort McCoy, WI; Fort Bragg, NC; and other CONUS and OCONUS locations as mission dictates.

1.6.6 Type of Contract: The government will award a Firm Fixed Price (FFP) contract.

1.6.7 Security Requirements: Contractor employees performing on this contract must be a U.S. citizen. At work performance start date, all contractor employees performing on this contract shall have a final SECRET security clearance and shall maintain the required security clearance throughout the life of the contract. The contractor is responsible for acquiring the clearances. The contractor shall ensure that all assigned personnel understand applicable security policies and directives found in DOD 5220.22-M, National Industry Security Program Operating Manual (NISPOM); DODM 5200.01 (Vol 4), DOD Information Security Program: Controlled Unclassified Information (CUI); AR 380-5, Information Security Program; and all other applicable policies and regulations.

The contractor shall ensure that classified data is controlled, protected, and safeguarded in accordance with the DOD 5220.22-M, National Industry Security Program Operating Manual (NISPOM); AR 380-5, Information Security Program; and all other applicable DOD and Army policies and regulations. AR 380-5 and current Army and DOD policy. Information classified up to SECRET shall be accessed and stored in government spaces only. The contractor shall agree that any data furnished by the government to the contractor shall be used only for performance under this PWS, and all copies of such data shall be returned to the government upon completion of this effort. The contractor shall comply with all requirements specified in the attached DD Form 254, Department of Defense Contract Security Classification Specification.

The contractor Facility Security Officer (FSO) will ensure there is a procedure for all contractor personnel to in-process and out-process Cyber Center of Excellence (CCoE) G2 (currently at Nelson Hall, Room 222). All contractors shall turn their Common Access Card (CAC) in to the COR on their last day of employment.

1.6.7.1 Handling/Access to Classified Information: The contractor shall comply with FAR 52.204-2, Security Requirements. This clause involves access to information classified "Confidential," "Secret," or "Top Secret" and requires contractors to comply with (1) the Security Agreement (DD Form 441), including the National Industrial Security Program Operating Manual (DoD 5220.22-M), and (2) any revisions to DoD 5220.22-M.

Any adverse action preventing a contractor from retaining access to classified material shall be brought to the attention of the COR, Security Office, and contractor Facility Security Officer (FSO) immediately.

1.6.7.2 Information Assurance (IA)/Information Technology (IT) Training: All contractor employees and associated subcontractors shall complete the DoD Cyber Awareness Challenge Training (https://cs.signal.army.mil/) before issuance of network access and annually thereafter. All contractor employees will successfully complete all required IA training as specified in AR 25-2 and as directed by the Government.

1.6.7.3 Contractor employees, to include subcontractors, requiring access to information systems to fulfill their duties shall possess the required favorable security investigation. The IASO/IANO from the activity that the contractor employee is assigned to, will submit an electronic DD 2875, System Authorization Access Request (SAAR) to the Cyber CoE G2 and G6 for verification that the contractor employee meets the requirements of AR 25-2 for accessing the Fort Gordon Network. (Ref AR 25-2)

1.6.7.4 Information Assurance (IA)/Information Technology (IT) Certification: Per DoD 8140/8570.01-M, DFARS 252.239.7001, and AR 25-2, the contractor employees' supporting IA/IT functions shall be appropriately certified upon contract award. The baseline certification as stipulated in DoD 8140/8570.01-M shall be completed upon contract award.

1.6.7.5 Information Security Program Training: All contractor employees, including subcontractors, assigned to this contract shall complete the online Information Security Program Training located on the Army Learning Management System (ALMS) site. Log into AKO, "Self Service", "My Training", "ALMS", "Go To Mandatory Training". Training shall be completed within **30 calendar days** of reporting for duty and annually thereafter. The contractor shall submit certificate of completion for each affected contractor employee and subcontractor employee to the COR and unit/activity security manager. (Ref ALARACT 207/2013, DTG 291848Z Aug 13, Subj: Army Wide Rollout and Requirement for Standardized Computer Web-Based Security Training on the Army Learning Management System (ALMS)).

1.6.7.6 Anti-Terrorism (AT) Level I Training: All contractor employees, to include subcontractor employees, requiring access Army installations, facilities and controlled access areas shall complete AT Level I awareness training within **30 calendar days after contract start** date or effective date of incorporation of this requirement into the contract, whichever is applicable. The contractor shall submit certificates of completion for each affected contractor employee and subcontractor employee, to the COR or to the contracting officer, if a COR is not assigned, within 30 calendar days after completion of training by all employees and subcontractor

personnel. AT level I awareness training is available at the following website: https://jkodirect.jten.mil/Atlas2/page/login/Login.jsf

Note: Contractor personnel shall receive an AOR briefing when traveling OCONUS on TDY. Briefing shall be provided by a certified ATO Level II Officer within seven (7) working days prior to TDY departure outside the 50 United States, its territories, and possessions. This is separate from the normal annual AT Level I training requirement (Ref AR 525-13).

1.6.7.7 iWATCH: The contractor and all associated sub-contractors shall brief all employees on the local iWATCH program (training standards provided by the requiring activity ATO). This local developed training will be used to inform employees of the types of behavior to watch for and instruct employees to report suspicious activity to the COR. This training shall be completed **within 30 calendar days** of contract award and within **30 calendar days** of new employees commencing performance with the results reported to the COR NLT **30 calendar days** after contract award.

1.6.7.8 Operation Security (OPSEC) Training: All contractor employees, including subcontractors, assigned to this contract shall complete Level I OPSEC training within **30 calendar days** of reporting for duty and then annually thereafter. Initial Level 1 OPSEC training will be conducted monthly by the Garrison OPSEC Officer or a Level II certified OPSEC Officer. Go to AKO: look for "*I am looking for*": drop down to Training: select the ALMS block: go to Mandatory Training and select Army OPSEC Level 1(Newcomers and Refresher). The contractor shall submit certificates of completion for each affected contractor employee and subcontractor employee to the COR and unit/activity security manager. (Ref AR 530-1, Operations Security)

The contractor shall adhere to local OPSEC policies and procedures of the government requiring activity. When in a TDY status in support of this work effort, the contractor shall also adhere to any OPSEC policies and procedures in effect at TDY locations.

1.6.7.9 Threat Awareness and Reporting Program (TARP) Training: All contractor employees, including subcontractors, assigned to this contract shall complete TARP training within 30 calendar days of reporting for duty and then annually thereafter. TARP training will be conducted by a CI agent or other trained as specified in AR 381-12, 2-4b.

1.6.7.10 Installation Access: All contractor employees, including subcontractors, shall comply with applicable installation and facility access security policies and procedures at all work and TDY locations. All contractors and subcontractors will be issued a Common Access Card (CAC) or an Installation Pass issued through the Automated Installation entry (AIE) Security System to access the installation. The Fort Gordon military installation is a limited access post. Unscheduled gate closures by the military police may occur at any time. In accordance with Army Regulation 525-13, paragraph 5-19, all prospective contractors will undergo a verification process by the installation Provost Marshal Office, Director of Emergency Services to determine the trustworthiness and suitability prior to being granted access to federal property. This will be accomplished using the National Crime Information Center (NCIC) Interstate Identification Index (III). This is the minimum baseline background check for entrance onto Army Installations for non-CAC holders to include entrance of visitors (Ref AR 190-13, paragraph 8-2). All personnel

entering or exiting the installation may experience a delay due to vehicle inspections, registration checks, verification of seat belt use, etc. All vehicles and personnel are subject to search and seizure. The search and seizure provisions shall apply to contractor personnel while within Fort Gordon's area of jurisdiction. Contractor personnel shall comply with all entry control requirements and security policies/procedures in effect. Security procedures may change without notice.

1.6.7.11 Identification of Contractor Employees: In accordance with FAR 37.114 contractor employees shall identify themselves as a contractor at all times while on the job, e.g., in the workplace, when attending meetings, in email, when answering government telephones, or when making phone calls.

1.6.7.12 ID Badges: The contractor shall provide each contractor employee an identification (ID) badge on contract start date or on employment start date. The ID badge shall be made of nonmetallic material, be easily readable, and shall contain the following minimum information: Employee's Name, Contract Company Name and Employee's Photograph. Contract employees shall wear proper identification at Government workplaces at all times.

1.6.7.13 Display of ID Badges: Contractor employees shall wear the ID badge at all times when performing work under this contract to include attending government meetings and conferences. Unless otherwise specified in the contract, each contract employee shall wear the ID badge in a conspicuous place on the front of exterior clothing and above the waist except when safety or health reasons prohibit such placement.

1.6.7.14 Answering Telephones: Contractor employees shall identify themselves as a contract employee when answering and making calls on government telephones.

1.6.7.15 Utilizing Electronic Mail:

- When contractor employees send e-mail messages to government personnel while performing on this contract, the contractor employee's e-mail address shall include the company name together with the person's name (ex: John Smith, Contractor, ABC Company).
- When contractor employees require access to a government computer, the contractor employee shall be required to obtain a Common Access Card. To do so, the contractor employee shall request a CAC through the COR.

NOTE: The government issued CAC is the property of the U.S. Government and shall be returned to the COR upon expiration of the contract, replacement or termination of the contract employee. (CAC card shall be turned in to the COR on contractor employee's last day of employment.) Unauthorized possession of the CAC can be prosecuted criminally under section 701, title 18, United States Code.

- All contractor employees shall conduct official communication using Government-owned or provided e-mail, networks, websites, systems, and devices. The use of commercial ISP e-mail accounts or personal e-mail accounts to conduct official communication is prohibited. Remote access / telework technology may be leveraged to ensure compliance with these requirements.

- Contractor employees are prohibited from using Army-assigned, AKO, and other official e-mail addresses for unofficial business affiliations. Personnel shall not provide official e-mail addresses to businesses, affiliated organizations, or online retailers; unless those entities are known by personnel to be legitimately engaging in official business.

1.6.7.16 Eligibility Verification for Employment: E-Verify is an Internet-based system that compares information from an employee's Form I-9, Employment Eligibility Verification, to data from U.S. Department of Homeland Security and Social Security Administration records to confirm employment eligibility. The U.S. Department of Homeland Security is working to stop unauthorized employment. By using E-Verify to determine the employment eligibility of their employees, companies become part of the solution in addressing this problem. All U.S. employers shall complete and retain a Form I-9 for each individual they hire for employment in the United States. This includes citizens and noncitizens. On the form, the employer shall examine the employment eligibility and identity document(s) an employee presents to determine whether the document(s) reasonably appear to be genuine and relate to the individual and record the document information on the Form I-9. The list of acceptable documents can be found on the last page of the form. E-Verify is mandatory for employers with federal contracts or subcontracts that contain the Federal Acquisition Regulation E-Verify clause.

1.6.7.17 Physical Security: The contractor shall be responsible for safeguarding all government equipment, information and property provided for contractor use. At the close of each work period, government facilities, equipment, and materials shall be secured.

1.6.7.18 Key Control: The Contractor shall establish and implement methods of making sure all keys/key cards issued to the Contractor by the Government are not lost or misplaced and are not used by unauthorized persons. NOTE: All references to keys include key cards. No keys issued to the Contractor by the Government shall be duplicated. The Contractor shall develop procedures covering key control that shall be included in the Quality Control Plan. Such procedures shall include turn-in of any issued keys by personnel who no longer require access to locked areas. The Contractor shall immediately report any occurrences of lost or duplicate keys/key cards to the Contracting Officer.

In the event keys, other than master keys, are lost or duplicated, the Contractor shall, upon direction of the Contracting Officer, re-key or replace the affected lock or locks; however, the Government, at its option, may replace the affected lock or locks or perform re-keying. When the replacement of locks or re-keying is performed by the Government, the total cost of re-keying or the replacement of the lock or locks shall be deducted from the monthly payment due the Contractor. In the event a master key is lost or duplicated, all locks and keys for that system shall be replaced by the Government and the total cost deducted from the monthly payment due the Contractor.

The Contractor shall prohibit the use of Government issued keys/key cards by any persons other than the Contractor’s employees. The Contractor shall prohibit the opening of locked areas by Contractor employees to permit entrance of persons other than Contractor employees engaged in the performance of assigned work in those areas, or personnel authorized entrance by the Contracting Officer.

1.6.7.19 Lock Combinations: The Contractor shall establish and implement methods of ensuring that all lock combinations are not revealed to unauthorized persons. The Contractor shall ensure that lock combinations are changed when personnel having access to the combinations no longer have a need to know such combinations. These procedures shall be included in the Contractor's Quality Control Plan.

1.6.7.20 Common Access Card:

a) When contractor performance is required on Government installation(s)/location(s), contractors shall ensure Common Access Cards (CACs) are obtained by all contract or subcontract employees who meet one or both of the following criteria:
- Require long-term logical access to Department of Defense computer networks and systems in either:
  - the unclassified environment; or
  - the classified environment where authorized by governing security directives.
- Perform work on a long-term basis, which requires the use of a CAC for installation entry control or physical access to facilities and buildings.

b) While visiting or performing work on Government installation(s)/location(s), contractor employees shall wear or prominently display the CAC as required by the governing local policy.

c) During the performance period of the contract, the contractor, or contractor employee as appropriate, shall:
- Within seven (7) working days of any changes to the listing of the contract personnel authorized a CAC, provide an updated listing to the contracting officer who will provide the updated listing to the TA (who will create new CAC applications or revoke those for employees no longer performing on the contract as appropriate);
- Contractors must return the government credential to the issuing agency as soon as one of the following occurs, unless otherwise determined by the service or agency:
  - When credential is no longer needed for contract performance
  - Upon completion of employment
  - Upon contract completion or termination
- Report lost or stolen CACs immediately to the TA.

d) The contracting officer may delay final payment under the contract if the Applicant (Contractor) fails to comply with these requirements.

f) Applicants who work overseas (e.g., those who accompany and support military forces) may require Geneva Convention CACs and may need to provide documentation of the appropriate Status-of-Forces Agreement (SOFA) at the RAPIDS Issuing Facility in order to receive a government credential.

1.6.7.20.1 Common Access Card (CAC) Issuance:

a) Prior to the Applicant contacting a Trusted Agent (TA) to request a government credential, the employee must be vetted through the employer using the DoD-approved process outlined in the following documents:
- Federal Information Processing Standards Publication 201-1, "Personal Identity Verification (PIV) of Federal Employees and Contractors"

- DoD Regulation 5200.2-R, "Personnel Security Program"
- Department of Defense Manual (DoDM) 1000.13, Volume 1—"DoD Identification (ID) Cards: ID Card Life-Cycle" Failure, inability, or delay in obtaining the CAC does not relieve the contractor from performing under the terms of the contract.

b) Contractors shall provide a listing of their employees that will require a CAC to the contracting officer. The listing will contain the following information in order for a CAC application to be created in the Trusted Associate Sponsorship System (TASS): last, middle, and first names; Social Security Number; Date of Birth; email address; the contract number; and the contract end date. The contracting officer will provide a copy of the list to the TA who will then create a CAC application in the TASS.

c) Once the application is created, a temporary login/password will be generated in TASS. The TA will securely distribute the login/password to that contractor employee. Contractor employee shall then enter the TASS web site using the temporary login/password and complete the CAC application. Once the Applicant has logged in for the first time, he or she has 30 calendar days to complete the application process.

1.6.8 Special Qualifications: The contractor is responsible for the overall management and oversight of this contract. It is the contractor's responsibility to staff and deploy qualified contractor personnel to meet all of the PWS requirements. The Government's historical staffing data is provided under Technical Exhibit 3. The Government anticipates the requirements within this PWS will require the following labor categories Instructor/Writers, Mobile Instructor/Writers, Administrative Technician/MTT Coordinator, Network Engineer, and Program Manager. However, it is the Contractor's responsibility to propose and deploy the correct labor types, mix, number and hours required to satisfactorily and professionally meet all PWS requirements.

1.6.8.1 In addition to the minimum criteria noted in 1.6.7.2, the instructors teaching the following courses shall possess the certifications noted in the chart below with currently approved test version:

INSTRUCTOR CERTIFICATION CRITERIA	
Course	**REQUIRED CERTIFICATION**
ISC2 Certified Information Systems Security Professional (CISSP)	ISC2 Certified Information Systems Security Professional (CISSP)
CompTIA (CASP)	CompTIA CASP+
CompTIA Security+ (SEC+)	CompTIA Security+
CompTIA Network+ (NET+)	CompTIA Network+
CompTIA A+ (A+)	CompTIA A+
Certified Information Security Manager (CISM)	Certified Information Security Manager (CISM)
Certified Ethical Hacker (CEH)	Computer Network Defense Analyst (CND-A) **OR** Computer Network Defense Infrastructure Support (CND-IS) **OR** Computer Network Defense Incident Responder (CND-IR) **OR** Computer Network Defense Auditor (CND-AU)

Network Management System (NMS)	CompTIA Security+ **AND** CompTIA Network+
Policy Class	3yrs Experience IA Policy Writing
Network Security	CompTIA Security+ **AND** CompTIA Network+
Host Based Security System (HBSS)	HBSS Train the trainer course
Cyber Sec First Responder (CFR)	Cyber Sec First Responder (CFR)

1.6.8.2 Instructor/Writer: The following are the minimum requirements that all instructors shall have:

- Possess and maintain a valid passport.
- Possess and maintain a valid driver's license.
- Be Instructor qualified: possess Instructor Training Course (ITC) or Common Faculty Development – Instructor Course (CFD-IC). ITC/ CFD-IC certification shall be less than five (5) years old. All personnel not properly ITC/ CFD-IC qualified will have to successfully complete the course upon award of contract.
- Possess a minimum of four (4) years of experience within the preceding six (6) years' experience instructing IA courses or worked directly in the IA career field during four (4) of the preceding six (6) years.
- Possess skills/knowledge of performing office automation work that includes word processing, electronic mail, spreadsheets, and other personal computer applications; typing a variety of materials from rough draft into final form including narrative and tabular material e.g. correspondence, reports, and forms; maintaining training records, historical records, survey results, reference library of training catalogs, regulations and other miscellaneous publications; establishing and maintaining office functional files and reference files; PC support skills related to installing, configuring and repairing; ability to research and resolve problems using a variety of resources and tools; knowledge management applications e.g. SharePoint, Army training requirements and resources system (ATRRS), and Learning Management Systems (LMS).
- Possess advanced presentation speaking skills (e.g. tailoring content and delivery for different audiences, presenting confidently to large or small groups, and using more creative approaches to presenting).

1.6.8.3 Administrative Technician:

- Possess skills/knowledge to compute funding requirements, workload data and TDY travel costs.
- Have a working knowledge of Microsoft Office® suite of software products and knowledge management applications e.g., SharePoint, Army training requirements and resources system (ATRRS), and Learning Management System (LMS).
- Possess at a minimum a technical or business certificate in administrative services or related field.

1.6.8.4 Network System Administrator: Contract personnel providing support for Network Administrator duties shall:

- Have a at least 3 years in IA technology or a related area, five (5) years Network Management experience and five (5) years of Information Assurance System Architect and Engineer (IASAE) experience.
- Have a six (6) years of experience working as a network administrator and worked directly in the career field during six (6) of the preceding eight (8) years.
- Must possess a current computing environment certification from Cisco at the Professional level along with corresponding IAT II baseline certification.

1.6.8.5 Program Manager (PM):

- Possess and maintain a current IAM-level III baseline certification
- Possess 5yr experience in project management.

1.6.8.6 The contractor at its own expense, shall replace, within thirty (10) business days, any contract personnel found to be unqualified or otherwise determined unsuitable by the government. This thirty day timeframe also includes any contract instructors who submit their resignation under the current contract. The government will exercise the right, if deemed necessary, to select an appropriate method (pretest, hands on practical exercise, etc.) to determine if the contractor is qualified/suitable to perform the requirements.

1.6.9 Post Award Conference/Periodic Progress Meetings: The Contractor agrees to attend all or as deemed necessary by the government post award conference convened by the contracting activity or contract administration office in accordance with Federal Acquisition Regulation Subpart 42.5. The contracting officer, Contracting Officers Representative (COR), and other Government personnel, as appropriate, may meet periodically with the contractor to review the contractor's performance. At these meetings the contracting officer will apprise the contractor of how the government views the contractor's performance and the contractor will apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the government.

1.6.10 Contracting Officer Representative (COR): The (COR) will be identified by separate letter. The COR monitors all technical aspects of the contract and assists in contract administration. The COR is authorized to perform the following functions: assure that the Contractor performs the technical requirements of the contract: perform inspections necessary in connection with contract performance: maintain written and oral communications with the Contractor concerning technical aspects of the contract: issue written interpretations of technical requirements, including Government drawings, designs, specifications: monitor Contractor's performance and notifies both the Contracting Officer and Contractor of any deficiencies; coordinate availability of government furnished property, and provide site entry of Contractor personnel. A letter of designation issued to the COR, a copy of which is sent to the Contractor, states the responsibilities and limitations of the COR, especially with regard to changes in cost or price, estimates or changes in delivery dates. The COR is not authorized to change any of the terms and conditions of the resulting order.

1.6.11 Key Personnel: All personnel providing support for the following duty areas are considered Key Personnel: Administrative Support, Site Leads, and the Program Manager. The above stated positons make up the program management team. The names of the program management team shall be designated in writing to the contracting officer. The program management team shall have full authority to act for the contractor on all contract matters relating to daily operation of this contract. The program management team shall be available between the hours of 0800 to 1700, Monday thru Friday except Federal holidays or when the government facility is closed for administrative reasons.

1.6.12 Supervision of Contractor Employees: The Government will not exercise any supervision or control over Contractor or subcontractor employees while performing work under the contract. Such employees shall be accountable solely to the Contractor, not the Government. The Contractor, in turn, shall be accountable to the Government.

1.6.13 Contractor Travel: Contractor shall be required to travel CONUS and OCONUS during the performance of this contract to conduct resident and mobile training, attend meetings, and conferences, in support of this PWS.

1.6.13.1 The contractor shall provide a cost estimate to the KO and obtain the KO's approval prior to travel. Travel that is not approved by the Contracting Officer will not be reimbursed and will be at the contractor's expense. The contractor shall submit actual travel receipts and will be authorized reimbursement of travel expenses consistent with Federal Acquisition Regulation (FAR) 31.205-46, the substantive provisions of the Joint Travel Regulation (JTR) and any funding limitation specified on this contract. Payment will be made for actual costs only; handling fees, G&A, and profit will not be allowed on Travel costs. Trip reports are due to the COR NLT seven (7) working days after travel. The contractor shall submit invoices for reimbursement, per the paragraph 5.7.3 citing the appropriate CLIN. All supporting documentation for travel shall be legible, error free and clearly identify the amount of reimbursement being sought.

1.6.13.2 The contractor shall be responsible for briefing government personnel on information and techniques acquired during travel. The contractor shall brief government personnel no later than seven (7) working days after travel.

1.6.14 Other Direct Costs: This category includes text books, print material, industry standard certification vouchers, and courseware products, associated with training activities. The requirement for purchases shall be approved, in writing by the COR prior to purchasing items. The contractor shall provide the required supplies/materials and submit invoices for reimbursement citing the appropriate CLIN. Payment will be made for actual costs only; handling fees, G&A, and profit will not be allowed on ODCs. Purchase reports are to include all purchases for the purpose of this contract during Period of Performance (POP).

1.6.15 Data Rights: The Government has unlimited rights to all documents/material produced under this contract. All documents and materials, to include the source codes of any software, produced under this contract shall be Government owned and are the property of the Government with all rights and privileges of ownership/copyright belonging exclusively to the Government.

These documents and materials may not be used or sold by the contractor without written permission from the Contracting Officer. All materials supplied to the Government shall be the sole property of the Government and may not be used for any other purpose. This right does not abrogate any other Government rights.

1.6.16 Organizational Conflict of Interest (OCI): Contractor and subcontractor personnel performing work under this contract may receive, have access to or participate in the development of proprietary or source selection information (e.g., cost or pricing information, budget information or analyses, specifications or work statements, etc.) or perform evaluation services which may create a current or subsequent (OCIs) as defined in FAR Subpart 9.5. The Contractor shall notify the COR immediately whenever it becomes aware that such access or participation may result in any actual or potential OCI and shall promptly submit a plan to the COR to avoid or mitigate any such OCI. The Contractor's mitigation plan will be determined to be acceptable at the discretion of the COR and in the event the COR unilaterally determines that any such OCI cannot be satisfactorily avoided or mitigated, the COR may affect other remedies as he or she deems necessary, including prohibiting the Contractor from participation in subsequent contracted requirements which may be affected by the OCI.

1.6.17 PHASE IN /PHASE OUT PERIOD: not required for this contract effort.

PART 2
DEFINITIONS & ACRONYMS

2. DEFINITIONS AND ACRONYMS:

2.1 DEFINITIONS:

2.1.1 CONTRACT ADMINISTRATOR: The official Government representative delegated authority by the Contracting Officer to administer a contract. This individual is normally a member of the appropriate Contracting/Procurement career field and advises on all technical contractual matters.

2.1.2 CONTRACTOR: A supplier or vendor awarded a contract to provide specific supplies or service to the government. The term used in this contract refers to the prime.

2.1.3 CONTRACTING OFFICER (KO): A person with authority to enter into, administer, and or terminate contracts, and make related determinations and findings on behalf of the government. Note: The only individual who can legally bind the government.

2.1.4 CONTRACT SPECILIST (KS): Formulate and administer policies and procedures to ensure achievement of Federal socioeconomic goals, such as those affecting small business, labor surplus areas, and disadvantaged business firms.

2.1.5 CONTRACTING OFFICER REPRESENTATIVE (COR): An employee of the U.S. Government appointed by the contracting officer to administer the contract. Such appointment shall be in writing and shall state the scope of authority and limitations. This individual has authority to provide technical direction to the Contractor as long as that direction is within the scope of the contract, does not constitute a change, and has no funding implications. This individual does NOT have authority to change the terms and conditions of the contract.

2.1.6 DEFECTIVE SERVICE: A service output that does not meet the standard of performance associated with the Performance Work Statement.

2.1.7 DELIVERABLE: Anything that can be physically delivered, but may include non-manufactured things such as meeting minutes or reports.

2.1.8 GOVERNMENT-FURNISHED PROPERTY (GFP) OR GOVERNMENT PROPERTY (GP): Property in the position of, or directly acquired by, the Government and subsequently made available to the Contractor.

2.1.9 KEY PERSONNEL. Contractor personnel that are evaluated in a source selection process and that may be required to be used in the performance of a contract by the Key Personnel listed in the PWS. When key personnel are used as an evaluation factor in best value procurement, an offer can be rejected if it does not have a firm commitment from the persons that are listed in the proposal.

2.1.10 PHYSICAL SECURITY: Actions that prevent the loss or damage of Government property.

2.1.11 QUALITY ASSURANCE: The government procedures to verify that services being performed by the Contractor are acceptable in accordance with established standards and requirements of this contract.

2.1.12 QUALITY ASSURANCE SPECIALIST: An official Government representative concerned with matters pertaining to the contract administration process and quality assurance/quality control. Acts as technical advisor to the Contracting Officer in these areas.

2.1.13 QUALITY ASSURANCE SURVEILLANCE PLAN (QASP): An organized written document specifying the surveillance methodology to be used for surveillance of contractor performance.

2.1.14 QUALITY CONTROL: All necessary measures taken by the Contractor to assure that the quality of an end product or service shall meet contract requirements.

2.1.15 REQUIRING ACTIVITY (RA): A military or other designated supported organization that identifies the need for contracted support during military operations.

2.1.16 RESOURCE MANAGER (RM): An official Government representative that performs analytical, evaluative, and budgetary work related to the development, management and execution of designated operating programs such as resource management, budget, contracting, human capital and mission operations.

2.1.17 SUBCONTRACTOR: One that enters into a contract with a prime contractor. The Government does not have private of contract with the subcontractor.

2.1.18 WORK DAY: The number of hours per day the Contractor provides services in accordance with the contract.

2.1.19 WORK WEEK: Monday through Friday, except for Federal holidays unless specified otherwise.

2.2 ACRONYMS:

ACOR	Alternate Contracting Officer Representative
AFARS	Army Federal Acquisition Regulation Supplement
AR	Army Regulation
CCE	Contracting Center of Excellence
CFR	Code of Federal Regulations
CFTE	Contractor-Full Time Equivalent
CMR	Contract Manpower Reporting
CME	Contract Manyear Equivalents
CONUS	Continental United States (excludes Alaska and Hawaii)

COR	Contracting Officer Representative
COTR	Contracting Officer's Technical Representative
COTS	Commercial-Off-the-Shelf
DA	Department of the Army
DD250	Department of Defense Form 250 (Receiving Report)
DD254	Department of Defense Contract Security Requirement List
DFARS	Defense Federal Acquisition Regulation Supplement
DMDC	Defense Manpower Data Center
DOD	Department of Defense
FAR	Federal Acquisition Regulation
HIPAA	Health Insurance Portability and Accountability Act of 1996
KO	Contracting Officer
OCI	Organizational Conflict of Interest
OCONUS	Outside Continental United States (includes Alaska and Hawaii)
ODC	Other Direct Costs
PIPO	Phase In/Phase Out
POC	Point of Contact
POP	Period of Performance
PRS	Performance Requirements Summary
PWS	Performance Work Statement
QA	Quality Assurance
QAP	Quality Assurance Program
QASP	Quality Assurance Surveillance Plan
QC	Quality Control
QCP	Quality Control Program
TE	Technical Exhibit

PART 3
GOVERNMENT FURNISHED PROPERTY, EQUIPMENT, AND SERVICES

3. GOVERNMENT FURNISHED ITEMS AND SERVICES:

3.1 Government-Furnished Resources: The contractor shall account for all property provided by the Government, and shall be responsible for the security and condition of said property. Serialized items shall be annotated at the time of issue, with a signature of acknowledgement by the individual contractors. All Government Furnish Property (GFP) is the property of the US Government and shall not be transferred to any individual, or agency, public or private without the express written approval of the Contracting Officer.

3.2 Facilities: The Government will provide the necessary workspace for the contractor staff to provide the support outlined in the PWS to include desk space, telephones, computers, and other items necessary to maintain an office environment located at the locations identified in this PWS.

3.3 Utilities: The Government will provide electricity, water, phone service, and network services (NIPRNET, DSN), to building (number). The Contractor shall instruct employees in utilities conservation practices. The contractor shall be responsible for operating under conditions that preclude the waste of utilities, which include turning off the water faucets or valves after using the required amount to accomplish cleaning vehicles and equipment.

3.4 Equipment: The Government will provide contractor personnel computer equipment, other data collection equipment/software, telephones, and monitors. The contractor shall have access to printers, plotters, copy machines, scanners and fax machines. The contractor shall be responsible for any loss or destruction of or damage to items of Government property that are removed from the installation premises by the contractor – with or without Government approval.

PART 4
CONTRACTOR FURNISHED ITEMS AND SERVICES

4. CONTRACTOR FURNISHED ITEMS AND RESPONSIBILITIES:

4.1 General: The Contractor shall furnish all supplies, equipment, facilities and services required to perform work under this contract that are not listed under Section 3 of this PWS.

4.2 Secret Facility Clearance: The contractor shall possess and maintain a SECRET facility clearance from the Defense Security Service. The Contractor employees performing work in support of this contract shall have a final SECRET security clearance at start date. The DD 254 is provided as Attachment.

4.3 Training / Certification: The Contractor shall provide on day one proof of required training and/or certifications described in Part 1.

4.4 Contract Management: The contractor shall provide all management, administration, security, quality control, and all else required to ensure successful completion of all deliverables.

4.5 Personnel: The contractor shall furnish adequate supervision, including a PM and the labor necessary to perform all services in an orderly, timely, and efficient manner. The PM shall have the authority to act on behalf of the contractor. The contractor shall utilize qualified and experienced employees capable of achieving the goals established in the contract. All personnel will maintain current qualifications and clearances and obtain any and all training required to meet mission requirements. Contractor personnel are employees of the contractor and under its administrative control and supervision. The contractor through its personnel shall perform tasks herein.

4.6 Contractor shall select, supervise, and exercise control and direction over his employees under this contract. The Government will not exercise any supervision or control over the contractor employees in its performance of contractual services under this contract. The contractor shall ensure that no prohibited personal services are performed under this contract.

PART 5
SPECIFIC TASKS

5. SPECIFIC TASKS:

5.1 Daily Responsibilities: The contractor shall work in an environment that will include military, contractor, and/or civilian instructors performing work on other projects. The contractor shall perform the required services at the sites specified in this contract for resident and mobile training sites. The contractor shall perform training, receive training, attend workshops, present at conferences, or assess training events at these various sites. Work with other schools, institutions, or agencies – Government, DoD, USA, Industry, Academia, or Foreign Government – to identify and implement new information applicable to specific courses (or lessons). Contractor shall perform duties as a Pearson Vue and/or Prometric proctor where applicable and required and coordinate all efforts with Army operations and course manager. Contractor shall participate actively in special and scheduled conferences; providing information, ideas and opinions that relate to CS and security training.

5.1.1 Program Management: The contractor shall provide complete program management and administrative tasks to ensure the requirements of the contract are met and to ensure the contractor adequately controls and supervises all personnel who perform services under this contract. The program manager shall be the focal point for all issues and shall keep the Government fully informed, both verbally and in writing. The contractor shall provide all necessary personnel, administrative, financial, and managerial resources required to support this contract. The Contractor shall supervise, coordinate work schedules, resolve minor concerns/issues and complete the administrative tasks associated with this PWS. The Contractor shall be familiar with all duties and qualifications stated in the PWS under all sections. The Program Manger is also responsible for the following:

- Ensure instructor/writer/developers are evaluated, and demonstrate subject matter expertise in various IT Security policies, hardware, software, and communication technologies.
- Have the capability and authority to resolve and respond to issues directly with the COR.
- Monitor trends and upcoming changes within the Army IA/ND community; analyze the CS environment; and develops recommended improvements.
- Provide project coordination and process improvements thru the QCP
- Provide and gather required information to assist with coordination support efforts.
- Shall supervise, coordinate work schedules, resolve minor concerns/issues and complete the administrative tasks associated with this PWS.

5.1.2 Instructor/Writer: The contractor shall be responsible for the following:

- The contractor shall instruct, prepare, review, author curriculum development products to include the development of new tests and training materials that are virtual, printed, and computer based to support the new curriculum. Update program documentation in support of all CyberCoE, Information Assurance/Cyber Security Courses. This task is required to support the Army CIO/G6 requirements for training and certification of IAT and IAM

Level I, II and III, IA personnel per DoD 8570.01-M or current regulation. (https://cs.signal.army.mil/docs/857001m.pdf).

- The Contractor shall be proficient in providing virtual training through software modalities
- Provide approved IA/CS instruction and apply the current program of instruction (POI) in each of the following courses: CISSP, CASP, Sec+, Net+, A+, CEH, CISM, Network Security, and other IA/CS policy and accreditation based courses. The number of courses and their content are subject to change based on DoD and Army requirements.
- Perform classroom instruction and maintain instructor certification (in accordance with Army and Fort Gordon instructor certification & evaluation criteria) to instruct various IA/CS courses and evaluate student performances using TRADOC-approved Instructional methodology to include TRADOC Pam 350-70-3 (Staff and Faculty Development) and TRADOC Pam 350-70-5 (System Approach to Training: Testing). Policies may be included in the Staff and Faculty Development Branch SOP.
- The contractor shall serve as assistant or primary instructors with a combined team of US Military, US government civilian, and defense contractor for related IA/CS courses conducted in-residence at CLC facilities, or as a member of a MTT, or at other locations as identified by the PWS.
- Collaborate with government personnel to establish acceptable instructor practices and student evaluation criteria.
- Stay current with required industry certifications and provide a copy of certifications to the COR.
- Manage and maintain accountability of remote site classroom presentation equipment and classroom furniture as prescribed in TRADOC Pamphlet 350-70-14, FG policies, and/or local SOP e.g. identify furniture or equipment issues and report them to proper personnel. All equipment issues shall be reported to the government representative at remote site location and COR.
- Maintain established classroom security requirements and procedures as prescribed in, applicable security regulation and policies, and/or local SOP. All issues will be reported to the COR or TPOC as soon as identified.
- Install and/or operate classroom control software on classroom IT equipment.
- Stand, bend and stoop for long periods of time, while delivering and assisting students with training materials. Conduct training indoors and outdoors.
- Provide students with evaluation sheets, administer and enforce test control standards, and conduct testing in subjects taught, to include grading of exams, evaluation of results, recording of exam result, and administer student critiques for courses. If the contract instructor is involved with a curriculum development effort, part of that effort shall be to develop new tests associated with the new curriculum. The tests shall be performance-based and/or criterion-based and are controlled and sensitive materials
- Maintain and report student attendance, records, and statistics as prescribed in TRADOC Regulation 350-18, FG policies, and/or local SOP. Evaluate students and report academic concerns to the COR when warranted by classroom performance, e.g. academic test failure, excessive absences, and etc.
- Audit and edit all developed courseware for accuracy, completeness, flow, balance, and clarity of understanding. From the results of the students' critiques, review and modify all

lessons, material, labs, and instruction to ensure it imparts the maximum amount of value in the minimum amount of time.

- Develop, research, provide and maintain new and existing IA courseware. All material shall be stored on government provided shared servers or government provided storage cabinets. Examples of courseware and materials are briefings, handouts, study guides, evaluations and progress checks, exercises, instructor-training materials and lesson plans. The contractor shall provide supervision, planning timelines for development, revision, administration or instruction of various IA/CS related courseware and material within the government specified timeframe. At a minimum the timeline(s) shall include: time to task schedules, milestones to completion, progress reports, limitations or constraints (**CDRL #A001**).
- Review the current POI and Lesson Plans (LP) quarterly (**CDRL #A002**) together with other pertinent documents, e.g. student handouts, slides, practical exercises, in order to revise, create, or update the documentation and curriculum to reflect current or emerging course needs. This is dependent on changes with technology and training requirements to meet mission requirements and/or critical tasks. Any update or addition to training material shall be recommended to the COR and approved by the COR prior to implementation. The COR will provide formats for lessons/training plans.
- All training products (hard or digital) provided will be reviewed and approved by the COR, in coordination with the Fort Gordon Training Development (TD). The COR will review and provide corrections NLT two (2) weeks. Return time may vary based on mission requirements. The contractor shall make all changes and return the documents to the COR for final review.
- Collect, maintain, and analyze student and customer feedback on CS courses, instructors, material, and/or curriculum. Student feedback shall provide information on instructor capabilities, curriculum relevance, and course updates, which address at a minimum: components recommend for sustainment, removal and/or addition to improve capability and functionality. The contractor shall collect, maintain, analyze, and modify critique question and format.
- Attend meetings and conferences. In efforts to maintain currency of the courseware and materials, the instructor/writer shall obtain and record information regarding modification requirements. The COR will identify the meeting location, security requirements, and method of documentation. The contractor shall submit all meeting/conference notes, handouts, and material obtained no later than (NLT) five (5) days after meeting/conference. (**CDRL #A005**).
- Work with Government personnel to develop courseware prerequisites. Provide courseware in a fixed or mobile environment.
- Modify POI or lesson plans and provide a planning timeline for research, technical analysis, development, revision, administration, approved instruction of CS courses and related courseware, and evaluation.
- Identify, evaluate and recommend benefit of new courses, training material and information technology for inclusion in the CS courses and related courseware.
- Ensure that a sufficient number of instructors are present during all class instruction to maintain the Instructor-to-Student (ITS) ratio of 1:20 in the TRADOC-approved POIs. For example, when the student population exceeds 20, a second instructor shall be present. The

Government does not intend to conduct any courses where the student population would require the presence of a third instructor to meet the ITS.

- Maintain daily availability for all labs during normal operating hours.
- MTT instructors perform duties as a Pearson VUE proctor for supporting courses at remote training locations.
- Provide daily access for stand-alone test kits.
- Coordinate with government POCs for lab and classrooms service.

5.1.3 Administrative Technician: The contractor shall be responsible for the following:

- Maintain calendar, scheduling, miscellaneous and administrative reports, memorandums, and attend meetings on a daily basis.
- Use Microsoft Office® suite of software products, perform keyboard typing and knowledge management applications (e.g. SharePoint, Army Training Requirements and Resources System (ATRRS), and Blackboard), calendars, and scheduling.
- Track and secure classified and unclassified data, information and/or systems.
- Provide and track instructor packets, instructor evaluations, scheduling of instructors, logistical functions to coordinate TDY and security clearance status.
- Coordinate the daily IA mobile training requests, staff training, and conferences.
- Report and maintain student attendance and student records and statistics IAW TRADOC Regulation 350-18.
- Input accurate data in Digital Training Management System (DTMS) to support the maintenance of student academic records, and issue diplomas to eligible students or system that replaces it.
- Coordinate class print requirements through government processes or commercial processes as required

5.1.4 Network System Administrator: The contractor shall be responsible for the following:

- Provide daily support for the installation, configuration, and administration in the following network technologies: TCP/IP protocols, Voice-over IP (VOIP), Ethernet Networks, Hyper-Text Transfer Protocols (HTTP), Simple Mail Transfer Protocol (SMTP), Point to Point protocols (PPP), routers, network switches, and hubs.
- Provide network engineering, architecture & administration design services to design communications architectures; encryption strategies; system monitoring; load balancing, enhance network performance with applicable patches, upgrades, etc.
- Provide support for the installation, configuration, administration, and maintenance of Automation Information Systems (AIS) hardware and operating systems software on unclassified but Sensitive Internet Protocol Router Network (NIPRNET) and commercial ISPs.
- Develop and maintain installation procedures, configuration management guides, troubleshooting guides and other documentation.
- Provide analysis, design, implementation support, acquisition support, and accreditation support for the implementation of networks and equipment at Cyber Security Organizations.

- Provide curriculum development support as the POI or lesson plans require modification due to changing technology, requirements or critical tasks as related to network infrastructure.

5.2 Deliverables:

5.2.1 Courseware Development Timeline(s) (CDRL #A001): The contract shall provide courseware timeline(s) as determined by the COR. The Courseware Development Timeline(s) shall identify if course is blended, online or virtual and include, at a minimum:

a) Title (Name)
b) Time to task schedules
c) Milestones to completion
d) Progress reports
e) Limitations or constraints

5.2.2 Lesson Plan/Training Material and Updates (CDRL #A002): The contractor shall author and/or update the curriculum, as determined by the Government:

a) Soft copy of completed course materials to include: references used in accordance with formats defined by the Government. The following are examples (but not all inclusive) of required course materials: lesson plans, syllabi, lecture presentations, scenarios, instructor notes and slides, student guides, instructor guides, evaluations, progress checks, handouts, exercise materials, training guides, student critique forms, schedules, trend analysis, tailored training packets, and classification markings. The contractor shall provide soft copies of the material as required by the government.
b) Hard copies of complete, current, and accurate course materials to include references used with 5.2.2 (a) above shall be maintained in a government provided storage area for review by the contractor and the government. All hard copy course material shall be marked with the appropriate classification. The contractor shall ensure that all updates for hard copy reference material are current before the commencement of a class. The contractor shall provide hard copies of the material as required by the government.

5.2.3 Monthly Progress Reports (CDRL #A003): The contractor shall provide a monthly Contractor's Progress, Status, and Management Report attached to the monthly WAWF invoice containing the following:

a) Brief description of the requirements
b) Brief summary of accomplishments during the reporting period
c) Significant events regarding the Contract
d) Progress on deliverable products
e) Current or anticipated problems
f) Summary of activity planned for the next reporting period

5.2.4 In-Progress Reviews (CDRL #A004): The contractor shall participate in IPRs; the frequency and scope of which shall be determined at the Post Award Meeting chaired by the Contracting Officer Representative (COR).

5.2.5 Meeting/ Conference Reports (CDRL #A005): The contractor shall provide an individual EXSUM of all meetings and conferences directed by the COR NLT five (5) days after event. Reports shall be submitted by each individual participant. Reports shall include, but shall not be limited to:

a) Date and place of event
b) Purpose of event
c) List of attendees
d) List of key personnel contacted
e) Facts and discussion of event
f) Recommendations resulting from event

5.3 CONTRACTOR MANPOWER REPORTING (CMR) (CDRL #A006): The Office of the Assistant Secretary of the Army (Manpower & Reserve Affairs) operates and maintains a secure Army data collection site where the Contractor shall report ALL Contractor manpower (including subcontractor manpower) required for performance of this contract. The Contractor shall completely fill in all the information in the format using the following web address https://www.beta.sam.gov/. Contractor will need to register in the system. It can take a couple of days for your account to be activate so register as early as possible at https://www.beta.sam.gov. The required information includes:

a) Contracting Office, Contracting Specialist, and Contracting Officer's Technical Representative (COTR) or also known as the Contracting Officer Representative (COR).
b) Contract number, including task and delivery order number
c) Beginning and ending dates covered by reporting period
d) Contractor's name, address, phone number, e-mail address, identity of Contractor employee entering data
e) Estimated direct labor hours (including sub-Contractors)
f) Estimated direct labor dollars paid this reporting period (including sub-Contractors)
g) Total payments (including sub-Contractors)
h) Predominant Federal Service Code (FSC) reflecting services provided by Contractor (and separate predominant FSC for each sub-Contractor if different)
i) Estimated data collection cost
j) Organizational title associated with the Unit Identification Code (UIC) for the Army Requiring Activity (the Army Requiring Activity is responsible for providing the Contractor with its UIC for the purposes of reporting this information)
k) Locations where Contractor and sub-Contractors perform the work (specified by zip code in the United States and nearest city, country, when in an overseas location, using standardized nomenclature provided on website)
l) Presence of deployment or contingency contract language
m) Number of Contractor and sub-Contractor employees deployed in theater this reporting period (by country). As part of its submission, the Contractor shall provide the estimated

total cost (if any) incurred to comply with this reporting requirement. Reporting period shall be the period of performance not to exceed 12 months ending September 30 of each government fiscal year and must be reported by 31 October of each calendar year. Contractors may use a direct XML data transfer to the database server or fill in the fields on the website. The XML direct transfer is a format for transferring files from a Contractor's system to the secure website without the need for separate data entries for each required data element at the website. The specific formats for the XML direct transfer may be downloaded from the website.

5.4 Invoicing/ WAWF :

5.4.1 Wide Area Workflow (WAWF) – Invoicing Receipt, Acceptance, and Property Transfer (iRAPT) shall be implemented in accordance with DFAR 252.232-7003 Electronic Submission of Payment Requests. Manual invoices will not be accepted.

5.4.2 Format. All invoices shall be submitted in WAWF as a 2-in-1 invoice with all applicable monthly documentation attached. Monthly documentation includes Monthly Progress Reports (MPR), In- Progress Reviews (IPR), Trip Reports, and other reports where applicable as stated in the PWS. Monthly documentation may not be submitted via email. Invoices submitted as anything other than a 2-in-1 and/or without attached monthly documentation will be rejected.

5.4.3 Payment for Travel. If the contractor is requesting payment for travel during the month of the submitted invoice, the Trip Report, along with supporting documentation shall accompany that invoice in order to receive payment for travel. Supporting documentation includes lodging, gas, airline, rental car, parking receipts, etc. If the electronic file containing supporting documentation is too large to be attached, please make arrangements with the COR to submit those documents via email.Routing. Invoices shall be routed to the COR as "inspector" as well as the "acceptor". When preparing an invoice, the "inspector" fields shall be completed with the DODAAC "W589GE" and the "acceptor" fields shall be completed with the DODAAC "W589GE".

5.4.4 Also, email notification of invoice submission shall be sent to the COR. This email shall be initiated through the WAWF system by clicking on the "send more email notifications" link. This link is found at the bottom of the "submitted successfully" page after the invoice is submitted into the system. Email notifications, other than those initiated through WAWF, will not meet proper routing requirements and will not be accepted. If email notifications are not properly sent to appropriate individuals through WAWF, the invoice will be rejected.

5.4.5 A contract employee with the authority to bind the company contractually shall certify all invoices. Invoices shall be submitted no later than (NLT) ten days after the end of each month (30-day period), depending on the contract award date. Failure to submit invoices in a timely manner is a direct violation of this contract agreement. The Government will have the right to exercise a penalty cost, due to the contractor being out of compliance of this contract agreement.

5.4.6 All invoices submitted at the end of the period of performance (each year) shall state "final invoice" and be clearly marked as base period. This annotation should be accomplished in Wide

Area Workflow Invoice 2-in-1 section, under Tab Misc. Info, and in the area of Initiator Information Comments.

5.5 <u>Insurance Requirements</u>: Required Insurance under FAR 52.228-5 Insurance – Work on a Government Installation

a) General Liability: $500,000 per occurrence limit on the comprehensive form of policy
b) Workman's Compensation: IAW State Requirements. Employer's liability coverage in the minimum amount of $100,000.
c) Automobile Liability: On the comprehensive form of policy, minimum of $200,000 per person and $500,000 per occurrence for bodily injury and $20,000 per occurrence for property damage for all automobiles and trucks used in connection with the performance of the contract.

PART 6
APPLICABLE PUBLICATIONS

6. APPLICABLE PUBLICATIONS (CURRENT EDITIONS)

The Contractor (to include subcontractors) shall abide by all applicable regulations, publications, manuals, and local policies and procedures.

Applicable documentation may include, but not limited to the following:

- AR 25-2, Army Cybersecurity, 4 May 2019
- AR 350-1, Army Training; http://www.apd.army.mil/series_range_pubs.asp?range=350
- AR 380-5, Department of the Army Information Security Program, 22 Nov 2019
- AR 380-53, dated 23 Dec 2019 - Information Systems Security Monitoring
- AR 385-10, The Army Safety Program, 24 Feb 2017
- AR 530-1, Operations Security (OPSEC), 26 Sep 2014
- AR 710-2, Supply Policy Below the National Level
- AR 735-5, Property Accountability Policies, 9 Nov 2016
- CJCSI 6510.01E, dated August 2007 - Information Assurance (IA) And Computer Network Defense (CND)
- CJCSM 6510.01A, dated June 2009 - Information Assurance (IA) And Computer Network Defense (CND) - Volume I (Incident Handling Program)
- DA PAM 710-2-1, Using Unit Supply System (Manual Procedures)
- DOD Directive 5105.21, Vol 1,2,3, dated Oct 2012 - Department of Defense Manual Sensitive Compartmented Information (SCI) Administrative Security Manual
- DOD 5200.01, Vol 1,2,3,4, DOD Information Security Program
- DOD 5200.2-R, Personnel Security Program
- DOD Manual 5220.22-M, National Industrial Security Program Operating Manual (NISPOM)
- DoD 8150.01-M, Information Assurance Workforce Improvement Program
- DODD 8530-1, dated January 2001 - Computer Network Defense (CND) Directive
- DODI 8530-2, dated March 2001 - Support To Computer Network Defense (CND)
- DOD 8530.1-M, dated December 2003 - CND Service Provider Certification and Accreditation Process Program Manual.
- DODD 8570.01-M, dated May 2008 - Information Assurance Workforce Improvement Program
- DODI 8500.2, dated February 2003 - Information Assurance (IA) Implementation
- DFARS 252.211-7007, Reporting of Government-Furnished Property, AUG 2012
- DFARS 252.211-7008, Use of Government-Assigned Serial Numbers, SEP 2010
- DFARS 252.245-7000, Government-Furnished Mapping, Charting, and Geodesy Property, APR 2012
- DFARS 252.245-7001, Tagging, Labeling, and Marking of Government-Furnished Property, APR 2012

- DFARS 252.245-7002, Reporting Loss of Government Property, APR 2012
- DFARS 252.245-7003, Contractor Property Management System Administration, APR 2012
- DFARS 252.245-7004, Reporting, Reutilization, and Disposal, MAR 2015
- FM 7.0, Training the Force
- FM 4-93.9 Tactic, techniques, and procedures for Army Automation Support
- TRADOC Regulation 350-6, Enlisted Initial Entry Training Policies and Administration, 9 Aug 2019
- TRADOC Regulation 350-18, The Army School System, 1 May 2018
- TRADOC Regulation 350-70 Army Learning Policy and Systems, 10 Jul 2017
- TRADOC Pamphlet 350-70-3, Staff and Faculty Development, 4 Oct 2018
- TRADOC Pamphlet 350-70-9, Budgeting and Resourcing, 12 Oct 2012
- TRADOC Pamphlet 350-70-12, The Army Distributed Learning (DL) Guide, 3 May 20113
- TRADOC Pamphlet 525-7-8, dated 22 February 2010 - The United States Army's Cyberspace Operations Concept Capability Plan 2016-2028.
- USASC&FG 350-2, (Staff and Faculty Development Training),
- USASC&FG 350-5, (Academic Training Schedule), 16 July 2007
- USASC&FG 350-22, (Test Control Policies and Procedures).
- IA Training Best Business Practices, dated 30 Nov 2009 - https://atc.us.army.mil/iastar/regulations.php.
- Other applicable DOD, Joint, Army, TRADOC, and USASC&FG regulations, policies, SOPs, and guidance located at the DISA's IA one-stop-shop: https://iase.disa.mil/policy-guidance/index.html.
- 52.245-9, Use and charges, APR 2012
- 252.211-7007, Reporting of Government-Furnished Property, AUG 2012
- 252.211-7008, Use of Government-Assigned Serial Numbers, SEP 2010
- 252.245-7000, Government-Furnished Mapping, Charting, and Geodesy Property, APR 2012
- 252.245-7001, Tagging, Labeling, and Marking of Government-Furnished Property, APR 2012
- 252.245-7002, Reporting Loss of Government Property, APR 2012
- 252.245-7003, Contractor Property Management System Administration, APR 2012
- 252.245-7004, Reporting, Reutilization, and Disposal, MAR 2015

PART 7
ATTACHMENT/TECHNICAL EXHIBIT LISTING

7. Attachment/Technical Exhibit List:

7.1. Technical Exhibit 1 – Performance Requirements Summary
7.2. Technical Exhibit 2 – Deliverables Schedule
7.3. Technical Exhibit 3 – Estimated Workload Data
7.4. Technical Exhibit 4 – Estimated Class Load Data
7.5. Technical Exhibit 5 – Historical MTT Data
7.6. Technical Exhibit 6 – Projected Training Dates
7.7. Attachment 1 – Consent Form for Release of Past Performance
7.8. Attachment 2 – Specific Relevant Contract Reference Sheets
7.9. Attachment 3 – Past Performance Questionnaire
7.10. Attachment 4 – Pricing Worksheet
7.11. Attachment 5 – Contract Data Requirements List
7.12. Attachment 6 – DD 254
7.13. Attachment 7 – Wage Determination – Camp Robinson
7.14. Attachment 8 – Wage Determinations – Ft. Bragg
7.15. Attachment 9 – Wage Determinations – Ft. Gordon
7.16. Attachment 10 – Wage Determinations – Ft. Hood
7.17. Attachment 11 – Wage Determinations – Ft. McCoy
7.18. Attachment 12 – Wage Determinations – Joint Base Lewis McChord

Technical Exhibit 1
Performance Requirements Summary

PERFORMANCE REQUIREMENT SUMMARY DOD 8140/8570.01-M COMPLIANCE TRAINING					
Required Service	**Paragraph Number**	**Performance Standard**	**Acceptable Level of Performance (ALP) or Acceptable Quality Level (AQL)**	**Method of Surveillance**	**Deduction from contract (Penalty)**
Contractor performance met specifications of the Contract and PWS.	Identified throughout the Contract	Contractor met requirements in the PWS 95% of the time, for content delivery within two (2) business days of the due date. No more than one (1) grammatical, typographical, or formatting error per page. Final corrected copy within two (2) business days of government comments. Receive no more than one (2) written customer complaint per performance period concerning contractor deficiencies relating to the contract requirements. Identified deficiencies were successfully corrected within	No deviation, unless approved in advance by the Government	100% inspection, random sampling, planned inspection, periodic inspection, & customer surveys	5%

		ten (10) workdays of notification.			
Provide classroom instruction. Qualified and certified in the course of instruction	5.1 1.6.7	Achieve overall SATISFACTORY rating during all Quality Assessment (QA) evaluations.	No Deviation unless approved in advance by the Government.	100% inspection, random sampling, planned inspection, & periodic inspection	5%
Provide Lesson Plan/ training Material and Updates.	5.0	Delivery shall occur within two (2) business days of the due date. Initial delivery of all training status updates shall be no less than 95% complete for content.	Not more than one (1) instances per calendar month	100% inspection, planned inspection, & periodic inspection	5%
Contractor met required delivery schedule. This element applies to contract performanc e including timely submission of all deliverables and reports identified in the contract.	5.3	IAW with the CDRL, initial delivery of all documents shall be no less than 95% complete for content and contain no more than one (1) grammatical, typographical or formatting error per page. Final delivery of all documents shall be complete with all errors corrected and resubmitted within two (2) business days after receipt of government comments.	Not more than two (2) instances per calendar month	100% inspection, random sampling, planned inspection, & periodic inspection	5%

Compiled with all security requirements.	1.6.6	Appropriate employee clearance is completed within two (2) weeks of the contract start date to COR. Zero security violations identified during Contract performance.	No deviation unless, approved in advance by the Government	100% inspection, random sampling, planned inspection, & periodic inspection	5%
Contract Management Schedule & Progress Milestone Dates	Identified throughout the Contract	The degree to which the contractor provides effective management to enable the execution and success of the Task (e.g., technical capabilities, reasonable/cooperative behavior.) The degree to which the contractor plans for and adheres to the PWS schedule and milestone dates (i.e., due dates, meetings, conferences, etc.)	Not more than one (1) instances per calendar month, unless approved in advance by the Government	Planned inspection, & customer surveys	5%
Technical Compliance and Product Quality Depth of Analysis	5.0	The degree to which the contractor demonstrates a sound understanding of PWS requirements and employs applicable standards/guidelines and uses comprehensive	Not more than one (1) instances per calendar month	Planned inspection, random sampling, & customer surveys	5%

		approaches in the formulation of requirements product solution. (i.e., identifying assumptions and risks, problem solving.)			
Staff Effectiveness & Reliability	5.0 1.6.7	The degree to which the contractor ensure that qualified personnel, in sufficient number, are allocated for the completion of the PWS.	No deviation	100% inspection, & customer surveys	5%
Prepare Invoices (WAWF)	5.7	IAW PWS Standards	Not more than one (1) instances per calendar month in NOT meeting the services requirement	100% inspection, & customer surveys	5%
Cost Realism & Control	Identified throughout the Contract	The degree to which the contractor accurately estimate and maintains PWS and Task costs.	Not more than 5% deviation from standard labor categories	100% inspection, & customer surveys	5%

Technical Exhibit 2

DELIVERABLES		
ITEM	**DATA NUMBER**	**DUE DATE**
Courseware Development Timeline(s)	CDRL #A001	Monthly
Lesson Plan/Training Material and Updates	CDRL #A002	Monthly
Monthly Progress Report	CDRL #A003	NLT 15th of every month; included with WAWF monthly invoice
In-Progress Reviews	CDRL #A004	Quarterly
Meeting/ Conference Reports	CDRL #A005	Monthly
Contractor Manpower Reporting	CDRL #A006	Monthly

Technical Exhibit 3

ESTIMATED WORKLOAD DATA			
ITEM	**NAME**	**ESTIMATED QUANTITY**	
1	Program Manager	1	1871
2	Instructor/Writer	26	50517
3	Network System Administrator	1	1871
4	Administrative Technician	1	1871
5	N/A	_____	N/A

CLAUSES INCORPORATED BY REFERENCE

52.202-1	Definitions	JUN 2020
52.203-3	Gratuities	APR 1984
52.203-6 Alt I	Restrictions On Subcontractor Sales To The Government (JUN 2020) -- Alternate I	OCT 1995
52.203-12	Limitation On Payments To Influence Certain Federal Transactions	JUN 2020
52.203-17	Contractor Employee Whistleblower Rights and Requirement To Inform Employees of Whistleblower Rights	JUN 2020
52.204-4	Printed or Copied Double-Sided on Postconsumer Fiber Content Paper	MAY 2011
52.204-9	Personal Identity Verification of Contractor Personnel	JAN 2011
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards	JUN 2020
52.204-13	System for Award Management Maintenance	OCT 2018
52.204-19	Incorporation by Reference of Representations and Certifications.	DEC 2014
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, or Proposed for Debarment	JUN 2020
52.209-7	Information Regarding Responsibility Matters	OCT 2018
52.212-4	Contract Terms and Conditions--Commercial Items	OCT 2018
52.217-5	Evaluation Of Options	JUL 1990
52.222-54	Employment Eligibility Verification	OCT 2015
52.228-5	Insurance - Work On A Government Installation	JAN 1997
52.232-18	Availability Of Funds	APR 1984
52.232-22	Limitation Of Funds	APR 1984
52.232-33	Payment by Electronic Funds Transfer--System for Award Management	OCT 2018
52.232-38	Submission of Electronic Funds Transfer Information with Offer	JUL 2013
52.232-39	Unenforceability of Unauthorized Obligations	JUN 2013
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	DEC 2013
52.237-2	Protection Of Government Buildings, Equipment, And Vegetation	APR 1984
52.237-3	Continuity Of Services	JAN 1991
52.242-13	Bankruptcy	JUL 1995
52.245-9	Use And Charges	APR 2012
252.203-7000	Requirements Relating to Compensation of Former DoD Officials	SEP 2011
252.203-7002	Requirement to Inform Employees of Whistleblower Rights	SEP 2013
252.203-7005	Representation Relating to Compensation of Former DoD Officials	NOV 2011
252.204-7003	Control Of Government Personnel Work Product	APR 1992
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting	DEC 2019
252.205-7000	Provision Of Information To Cooperative Agreement Holders	DEC 1991
252.209-7002	Disclosure Of Ownership Or Control By A Foreign Government	JUN 2010

252.209-7004	Subcontracting With Firms That Are Owned or Controlled By The Government of a Country that is a State Sponsor of Terrorism	MAY 2019
252.209-7999 (Dev)	Representation by Corporations Regarding an Unpaid Delinquent Tax Liability or a Felony Conviction under any Federal Law (Deviation)	JAN 2012
252.211-7003	Item Unique Identification and Valuation	MAR 2016
252.219-7010	Notification of Competition Limited to Eligible 8(a) Participants -- Partnership Agreement	OCT 2019
252.225-7043	Antiterrorism/Force Protection Policy for Defense Contractors Outside the United States	JUN 2015
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports	DEC 2018
252.239-7001	Information Assurance Contractor Training and Certification	JAN 2008

CLAUSES INCORPORATED BY FULL TEXT

52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (AUG 2020)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in the provision at 52.204-26, Covered Telecommunications Equipment or Services--Representation, or in paragraph (v) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Items.

(a) Definitions. As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Prohibition.

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or

services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(d) Representations. The Offeror represents that--

(1) It [] will, [] will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that--

It [] does, [] does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) Disclosures.

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.204-25 PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (AUG 2020)

(a) Definitions. As used in this clause--

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means--

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);

(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau

of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means--

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled--

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

Interconnection arrangements means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connection of a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Reasonable inquiry means an inquiry designed to uncover any information in the entity's possession about the identity of the producer or provider of covered telecommunications equipment or services used by the entity that excludes the need to include an internal or third-party audit.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

(b) Prohibition.

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. The Contractor is prohibited from providing to the Government any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this

clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR 4.2104.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract, or extending or renewing a contract, with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR 4.2104. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract.

(c) Exceptions. This clause does not prohibit contractors from providing--

(1) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(2) Telecommunications equipment that cannot route or redirect user data traffic or permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(d) Reporting requirement.

(1) In the event the Contractor identifies covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, or the Contractor is notified of such by a subcontractor at any tier or by any other source, the Contractor shall report the information in paragraph (d)(2) of this clause to the Contracting Officer, unless elsewhere in this contract are established procedures for reporting the information; in the case of the Department of Defense, the Contractor shall report to the website at https://dibnet.dod.mil. For indefinite delivery contracts, the Contractor shall report to the Contracting Officer for the indefinite delivery contract and the Contracting Officer(s) for any affected order or, in the case of the Department of Defense, identify both the indefinite delivery contract and any affected orders in the report provided at https://dibnet.dod.mil.

(2) The Contractor shall report the following information pursuant to paragraph (d)(1) of this clause:

(i) Within one business day from the date of such identification or notification: The contract number; the order number(s), if applicable; supplier name; supplier unique entity identifier (if known); supplier Commercial and Government Entity (CAGE) code (if known); brand; model number (original equipment manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (d)(2)(i) of this clause: Any further available information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of covered telecommunications equipment or services, and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services.

(e) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph (b)(2), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial items.

(End of clause)

52.204-26 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES--REPRESENTATION (OCT 2020)

(a) Definitions. As used in this provision, “covered telecommunications equipment or services” and "reasonable inquiry" have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for “covered telecommunications equipment or services”.

(c) Representations.

(1) The Offeror represents that it [___] does, [___] does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it [___] does, [___] does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

52.212-3 OFFEROR REPRESENTATIONS AND CERTIFICATIONS--COMMERCIAL ITEMS (AUG 2020)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through https://www.sam.gov. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v) of this provision.

(a) Definitions. As used in this provision --

“Economically disadvantaged women-owned small business (EDWOSB) Concern” means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

"Forced or indentured child labor" means all work or service-

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

“Highest-level owner” means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

“Immediate owner” means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: Ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

“Inverted domestic corporation” means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

“Manufactured end product” means any end product in product and service codes (PSCs) 1000-9999, except--

(1) PSC 5510, Lumber and Related Basic Wood Materials;

(2) Product or Service Group (PSG) 87, Agricultural Supplies;

(3) PSG 88, Live Animals;

(4) PSG 89, Subsistence;

(5) PSC 9410, Crude Grades of Plant Materials;

(6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;

(7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;

(8) PSC 9610, Ores;

(9) PSC 9620, Minerals, Natural and Synthetic; and

(10) PSC 9630, Additive Metal Materials.

“Place of manufacture” means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

“Predecessor” means an entity that is replaced by a successor and includes any predecessors of the predecessor.

“Restricted business operations” means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate--

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

“Sensitive technology”--

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically--

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

“Service-disabled veteran-owned small business concern”--

(1) Means a small business concern--

(i) Not less than 51 percent of which is owned by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran.

(2) Service-disabled veteran means a veteran, as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16).

“Small business concern” means a concern, including its affiliates, that is independently owned and operated, not dominant in the field of operation in which it is bidding on Government contracts, and qualified as a small business under the criteria in 13 CFR Part 121 and size standards in this solicitation.

“Small disadvantaged business concern”, consistent with 13 CFR 124.1002, means a small business concern under the size standard applicable to the acquisition, that--

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by--

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding $750,000 after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13.CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

“Subsidiary” means an entity in which more than 50 percent of the entity is owned--

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation.

“Successor” means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term

“successor” does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

“Veteran-owned small business concern” means a small business concern--

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

"Women-owned business concern" means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and whose management and daily business operations are controlled by one or more women.

“Women-owned small business concern” means a small business concern--

(1) That is at least 51 percent owned by one or more women or, in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; or

(2) Whose management and daily business operations are controlled by one or more women.

“Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127)”, means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States.

(b) (1) Annual Representations and Certifications. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through http://www.sam.gov. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications--Commercial Items, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs __.

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract will be performed in the United States or its outlying areas. Check all that apply.

(1) Small business concern. The offeror represents as part of its offer that it (___) is, (___) is not a small business concern.

(2) Veteran-owned small business concern. (Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.) The offeror represents as part of its offer that it (___) is, (___) is not a veteran-owned small business concern.

(3) Service-disabled veteran-owned small business concern. (Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.) The offeror represents as part of its offer that it (___) is, (___) is not a service-disabled veteran-owned small business concern.

(4) Small disadvantaged business concern. (Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.) The offeror represents that it (___) is, (___) is not a small disadvantaged business concern as defined in 13 CFR 124.1002.

(5) Women-owned small business concern. (Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.) The offeror represents that it (___) is, (___) is not a women-owned small business concern.

(6) WOSB concern eligible under the WOSB Program. [Complete only if the offeror represented itself as a women-owned small business concern in paragraph (c)(5) of this provision.] The offeror represents that--

(i) It [___] is, [___] is not a WOSB concern eligible under the WOSB Program, has provided all the required documents to the WOSB Repository, and no change in circumstances or adverse decisions have been issued that affects its eligibility; and

(ii) It [___] is, [___] is not a joint venture that complies with the requirements of 13 CFR part 127, and the representation in paragraph (c)(6)(i) of this provision is accurate for each WOSB concern eligible under the WOSB Program participating in the joint venture. [The offeror shall enter the name or names of the WOSB concern eligible under the WOSB Program and other small businesses that are participating in the joint venture: ___ .] Each WOSB concern eligible under the WOSB Program participating in the joint venture shall submit a separate signed copy of the WOSB representation.

(7) Economically disadvantaged women-owned small business (EDWOSB) concern. [Complete only if the offeror represented itself as a WOSB concern eligible under the WOSB Program in (c)(6) of this provision.] The offeror represents that--

(i) It [___] is, [___] is not an EDWOSB concern, has provided all the required documents to the WOSB Repository, and no change in circumstances or adverse decisions have been issued that affects its eligibility; and

(ii) It [___] is, [___] is not a joint venture that complies with the requirements of 13 CFR part 127, and the representation in paragraph (c)(7)(i) of this provision is accurate for each EDWOSB concern participating in the joint venture. [The offeror shall enter the name or names of the EDWOSB concern and other small businesses that are participating in the joint venture: ___ -.] Each EDWOSB concern participating in the joint venture shall submit a separate signed copy of the EDWOSB representation.

Note: Complete paragraphs (c)(8) and (c)(9) only if this solicitation is expected to exceed the simplified acquisition threshold.

(8) Women-owned business concern (other than small business concern). (Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.) The offeror represents that it (___) is, a women-owned business concern.

(9) Tie bid priority for labor surplus area concerns. If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price:

___

(10) HUBZone small business concern. (Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.) The offeror represents, as part of its offer, that--

(i) It [___] is, [___] is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR Part 126; and

(ii) It [___] is, [___] is not a HUBZone joint venture that complies with the requirements of 13 CFR Part 126, and the representation in paragraph (c)(10)(i) of this provision is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [The offeror shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: ___ .] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate
signed copy of the HUBZone representation.

(d) Certifications and representations required to implement provisions of Executive Order 11246--

(1) Previous Contracts and Compliance. The offeror represents that--

(i) It (___) has, (___) has not, participated in a previous contract or subcontract subject either to the Equal Opportunity clause of this solicitation, the and

(ii) It (___) has, (___) has not, filed all required compliance reports.

(2) Affirmative Action Compliance. The offeror represents that--

(i) It (___) has developed and has on file, (___) has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the Secretary of Labor (41 CFR Subparts 60-1 and 60-2), or

(ii) It (___) has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

(e) Certification Regarding Payments to Influence Federal Transactions (31 U.S.C. 1352). (Applies only if the contract is expected to exceed $150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) Buy American Certificate. (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American --Supplies, is included in this solicitation.)

(1) The offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that for other than COTS items, the offeror has considered components of unknown origin to have been mined, produced, or manufactured outside the United States. The offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products, i.e., an end product that is not a COTS item and does not meet the component test in paragraph (2) of the definition of “domestic end product.” The terms “commercially available off-the-shelf (COTS) item,” “component,” “domestic

end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American--Supplies."
(2) Foreign End Products:

Line Item No.	Country of Origin
___	___
___	___
___	___

(List as necessary)

(3) The Government will evaluate offers in accordance with the policies and procedures of FAR Part 25.

(g)(1) Buy American--Free Trade Agreements--Israeli Trade Act Certificate. (Applies only if the clause at FAR 52.225-3, Buy American--Free Trade Agreements--Israeli Trade Act, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (g)(1)(iii) of this provision, is a domestic end product and that for other than COTS items, the offeror has considered components of unknown origin to have been mined, produced, or manufactured outside the United States. The terms ``Bahrainian, Moroccan, Omani, Panamanian, or Peruvian end product," ``commercially available off-the-shelf (COTS) item," ``component," ``domestic end product," ``end product," ``foreign end product," ``Free Trade Agreement country," ``Free Trade Agreement country end product," ``Israeli end product," and ``United States" are defined in the clause of this solicitation entitled ``Buy American--Free Trade Agreements--Israeli Trade Act."

(ii) The offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahrainian, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled ``Buy American--Free Trade Agreements--Israeli Trade Act":

Free Trade Agreement Country End Products (Other than Bahrainian, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line Item No.	Country of Origin
___	___
___	___
___	___

[List as necessary]

(iii) The offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products, i.e., an end product that is not a COTS item and does not meet the component test in paragraph (2) of the definition of "domestic end product."

Other Foreign End Products:

Line Item No.	Country of Origin
___	___
___	___
___	___

[List as necessary]

(iv) The Government will evaluate offers in accordance with the policies and procedures of FAR Part 25.
(2) *Buy American Act-Free Trade Agreements-Israeli Trade Act Certificate, Alternate I (Jan 2004)*. If Alternate I to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Canadian end products as defined in the clause of this solicitation entitled "Buy American -Free Trade Agreements-Israeli Trade Act":

Canadian End Products:

Line Item No.
___
___
___

[List as necessary]

(3) Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II (Jan 2004). If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Canadian end products or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Canadian or Israeli End Products:

Line Item No.	Country of Origin
___	___
___	___
___	___

[List as necessary]

(4) Buy American--Free Trade Agreements--Israeli Trade Act Certificate, Alternate III. If Alternate III to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahrainian, Korean, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled ``Buy American --Free Trade Agreements--Israeli Trade Act":

Free Trade Agreement Country End Products (Other than Bahrainian, Korean, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line Item No.	Country of Origin
___	___
___	___
___	___

[List as necessary]

(5) Trade Agreements Certificate. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(5)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled ``Trade Agreements".

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line Item No.	Country of Origin
___	___
___	___
___	___

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR Part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters (Executive Order 12689)*. (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals--

(1) [____] Are, [____] are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) [____] Have, [____] have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property; and

(3) [____] Are, [____] are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) [____] Have, [____] have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) Examples.

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appear rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals Contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) Certification Regarding Knowledge of Child Labor for *Listed End Products (Executive Order 13126)*. [*The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at* 22.1503*(b)*.]

(1) *Listed end products*.

Listed End Product	Listed Countries of Origin
___	___
___	___
___	___

(2) *Certification*. [*If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block*.]

[___] (i) The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.

[___] (ii) The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly—

(1) (___) In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) (___) Outside the United States.

(j) Place of manufacture. (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly--

(1) (___) In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) (___) Outside the United States.

(k) Certificates regarding exemptions from the application of the Service Contract Labor Standards. (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.)

[*The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.*]

[___] (1) Maintenance, calibration, or repair of certain equipment as described in FAR 22.1003-4(c)(1). The offeror (___) does (___) does not certify that—

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

[___] (2) Certain services as described in FAR 22.1003-4(d)(1). The offeror (___) does (___) does not certify that—

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies—

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) Taxpayer Identification Number (TIN) (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) Taxpayer Identification Number (TIN).

(___) TIN: ----------.

(___) TIN has been applied for.

(___) TIN is not required because:

(___) Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

(___) Offeror is an agency or instrumentality of a foreign government;

(___) Offeror is an agency or instrumentality of the Federal Government.

(4) Type of organization.

(___) Sole proprietorship;

(___) Partnership;

(___) Corporate entity (not tax-exempt);

(___) Corporate entity (tax-exempt);

(___) Government entity (Federal, State, or local);

(___) Foreign government;

(___) International organization per 26 CFR 1.6049-4;

(___) Other ----------.

(5) Common parent.

(___) Offeror is not owned or controlled by a common parent;

(___) Name and TIN of common parent:

Name - ___ .
TIN - ___ .

(m) Restricted business operations in Sudan. By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) Prohibition on Contracting with Inverted Domestic Corporations—

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) Representation. By submission of its offer, the offeror represents that--

(i) It is not an inverted domestic corporation; and

(ii) It is not a subsidiary of an inverted domestic corporation.

(o) Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and Certifications*. Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if—

(i) This solicitation includes a trade agreements certification (*e.g.*, 52.212-3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror*. (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation.

(1) The Offeror represents that it [____] has or [____] does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: ____

Immediate owner legal name: ____

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity:

[____] Yes or [____] No.

(3) If the Offeror indicates “yes” in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest level owner CAGE code: ____

Highest level owner legal name: ____

(Do not use a “doing business as” name)

(q) *Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.*

(1) As required by section 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that—

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless and agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that--

(i) It is [____] is not [____] a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is [____] is not [____] a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) Predecessor of Offeror. (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it [___] is or [___] is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated ``is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: ___ (or mark ``Unknown").

Predecessor legal name: ___ .

(Do not use a ``doing business as'' name).

(t) Public Disclosure of Greenhouse Gas Emissions and Reduction Goals. Applies in all solicitations that require offerors to register in SAM (12.301(d)(1)).

(1) This representation shall be completed if the Offeror received $7.5 million or more in contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than $7.5 million in Federal contract awards in the prior Federal fiscal year.

(2) Representation. [Offeror to check applicable block(s) in paragraph (t)(2)(i) and (ii)]. (i) The Offeror (itself or through its immediate owner or highest-level owner) [___] does, [___] does not publicly disclose greenhouse gas emissions, i.e., makes available on a publicly accessible Web site the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(ii) The Offeror (itself or through its immediate owner or highest-level owner) [___] does, [___] does not publicly disclose a quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly accessible Web site a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(iii) A publicly accessible Web site includes the Offeror's own Web site or a recognized, third-party greenhouse gas emissions reporting program.

(3) If the Offeror checked ``does'' in paragraphs (t)(2)(i) or (t)(2)(ii) of this provision, respectively, the Offeror shall provide the publicly accessible Web site(s) where greenhouse gas emissions and/or reduction goals are reported: ___ .

(u)(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) Representation. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) Covered Telecommunications Equipment or Services--Representation. Section 889(a)(1)(A) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for ``covered telecommunications equipment or services''.

(2) The Offeror represents that it [ ] does, [ ] does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS--COMMERCIAL ITEMS (OCT 2020)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial items:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (Jul 2018) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (AUG 2020) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).

(5) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(6) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial items: (Contracting Officer check as appropriate.)

XX (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with Alternate I (Oct 1995) (41 U.S.C. 4704 and 10 U.S.C. 2402).

____ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (JUN 2020) (41 U.S.C. 3509).

____ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

XX (4) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

___ (5) [Reserved]

____ (6) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

____ (7) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

XX (8) 52.209-6, Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment. (JUN 2020) (31 U.S.C. 6101 note).

_____ (9) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

____ (10) [Reserved]

____ (11)(i) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (MAR 2020) (15 U.S.C. 657a).

____ (ii) Alternate I (MAR 2020) of 52.219-3.

____ (12) (i) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (MAR 2020) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

____ (ii) Alternate I (MAR 2020) of 52.219-4.

____ (13) [Reserved]

____ (14)(i) 52.219-6, Notice of Total Small Business Set-Aside (MAR 2020) (15 U.S.C. 644).

____ (ii) Alternate I (MAR 2020) of 52.219-6.

____ (15)(i) 52.219-7, Notice of Partial Small Business Set-Aside (MAR 2020) (15 U.S.C. 644).

____ (ii) Alternate I (MAR 2020) of 52.219-7.

XX (16) 52.219-8, Utilization of Small Business Concerns (OCT 2018) (15 U.S.C. 637(d)(2) and (3)).

____ (17)(i) 52.219-9, Small Business Subcontracting Plan (JUN 2020) (15 U.S.C. 637(d)(4)).

____ (ii) Alternate I (NOV 2016) of 52.219-9.

____ (iii) Alternate II (NOV 2016) of 52.219-9.

____ (iv) Alternate III (JUN 2020) of 52.219-9.

____ (v) Alternate IV (JUN 2020) of 52.219-9.

____ (18) (i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).

____ (ii) Alternate I (MAR 2020) of 52.219-13.

XX (19) 52.219-14, Limitations on Subcontracting (MAR 2020) (15 U.S.C. 637(a)(14)).

____ (20) 52.219-16, Liquidated Damages—Subcontracting Plan (Jan 1999) (15 U.S.C. 637(d)(4)(F)(i)).

____ (21) 52.219-27, Notice of Service-Disabled Veteran-Owned Small Business Set-Aside (MAR 2020) (15 U.S.C. 657f).

XX (22) (i) 52.219-28, Post Award Small Business Program Rerepresentation (MAY 2020) (15 U.S.C. 632(a)(2)).

____ (ii) Alternate I (MAR 2020) of 52.219-28.

____ (23) 52.219-29, Notice of Set-Aside for, or Sole Source Award to, Economically Disadvantaged Women-Owned Small Business (EDWOSB) Concerns (MAR 2020) (15 U.S.C. 637(m)).

____ (24) 52.219-30, Notice of Set-Aside for, or Sole Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (MAR 2020) (15 U.S.C. 637(m)).
____ (25) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).

____ (26) 52.219-33, Nonmanufacturer Rule (MAR 2020) (15 U.S.C. 637(a)(17)).

XX (27) 52.222-3, Convict Labor (JUN 2003) (E.O. 11755).

XX (28) 52.222-19, Child Labor--Cooperation with Authorities and Remedies (JAN 2020) (E.O. 13126).

XX (29) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

XX (30)(i) 52.222-26, Equal Opportunity (SEPT 2016) (E.O. 11246).

____ (ii) Alternate I (FEB 1999) of 52.222-26.

XX (31)(i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

____ (ii) Alternate I (JUL 2014) of 52.222-35.

XX (32)(i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

____ (ii) Alternate I (JUL 2014) of 52.222-36.

____ (33) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

____ (34) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).

____ (35)(i) 52.222-50, Combating Trafficking in Persons (OCT 2020) (22 U.S.C. chapter 78 and E.O. 13627).

____ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

____ (36) 52.222-54, Employment Eligibility Verification (OCT 2015). (E. O. 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial items as prescribed in 22.1803.)

____ (37)(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA–Designated Items (MAY 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

____ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

____ (38) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (JUN 2016) (E.O. 13693).

____ (39) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (JUN 2016) (E.O. 13693).

_____ (40) (i) 52.223-13, Acquisition of EPEAT® Registered Imaging Equipment (JUN 2014) (E.O.s 13423 and 13514).

_____ (ii) Alternate I (OCT 2015) of 52.223-13.

_____ (41)(i) 52.223-14, Acquisition of EPEAT® Registered Televisions (JUN 2014) (E.O.s 13423 and 13514).

_____ (ii) Alternate I (JUN 2014) of 52.223-14.

____ (42) 52.223-15, Energy Efficiency in Energy-Consuming Products (MAY 2020) (42 U.S.C. 8259b).

____ (43)(i) 52.223-16, Acquisition of EPEAT®-Registered Personal Computer Products (OCT 2015) (E.O.s 13423 and 13514).

____ (ii) Alternate I (JUN 2014) of 52.223-16.

XX (44) 52.223-18, Encouraging Contractor Policies to Ban Text Messaging While Driving (JUN 2020) (E.O. 13513).

____ (45) 52.223-20, Aerosols (JUN 2016) (E.O. 13693).

____ (46) 52.223-21, Foams (JUN 2016) (E.O. 13693).

____ (47)(i) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

____ (ii) Alternate I (JAN 2017) of 52.224-3.

____ (48) 52.225-1, Buy American--Supplies (MAY 2014) (41 U.S.C. chapter 83).

XX (49) (i) 52.225-3, Buy American--Free Trade Agreements--Israeli Trade Act (MAY 2014) (41 U.S.C. chapter 83, 19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, Pub. L. 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

_____ (ii) Alternate I (MAY 2014) of 52.225-3.

_____ (iii) Alternate II (MAY 2014) of 52.225-3.

_____ (iv) Alternate III (MAY 2014) of 52.225-3.

____ (50) 52.225-5, Trade Agreements (OCT 2019) 19 U.S.C. 2501, et seq., 19 U.S.C. 3301 note).

____ (51) 52.225-13, Restrictions on Certain Foreign Purchases (JUN 2008) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

____ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. 2302 Note).

____ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (NOV 2007) (42 U.S.C. 5150

____ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).

____ (55) 52.229-12, Tax on Certain Foreign Procurements (JUN 2020).

____ (56) 52.232-29, Terms for Financing of Purchases of Commercial Items (FEB 2002) (41 U.S.C. 4505, 10 U.S.C. 2307(f)).

____ (57) 52.232-30, Installment Payments for Commercial Items (JAN 2017) (41 U.S.C. 4505, 10 U.S.C. 2307(f)).

____ (58) 52.232-33, Payment by Electronic Funds Transfer—System for Award Management (OCT 2018) (31 U.S.C. 3332).

____ (59) 52.232-34, Payment by Electronic Funds Transfer—Other than System for Award Management (JUL 2013) (31 U.S.C. 3332).

____ (60) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).

____ (61) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).

____ (62) 52.242-5, Payments to Small Business Subcontractors (JAN 2017)(15 U.S.C. 637(d)(13)).

XX (63)(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (FEB 2006) (46 U.S.C. Appx. 1241(b) and 10 U.S.C. 2631).

____ (ii) Alternate I (APR 2003) of 52.247-64.

____ (iii) Alternate II (FEB 2006) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial items: (Contracting Officer check as appropriate.)

XX (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

XX (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

_____ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards--Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

_____ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards--Price Adjustment (MAY 2014) (29 U.S.C 206 and 41 U.S.C. chapter 67).

_____ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Requirements (MAY 2014) (41 U.S.C. chapter 67).

XX (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Requirements (MAY 2014) (41 U.S.C. chapter 67).

_____(7) 52.222-55, Minimum Wages Under Executive Order 13658 (DEC 2015) (E.O. 13658).

_____ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2017) (E.O. 13706).

_____ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records--Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR Subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1)in a subcontract for commercial items. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause—

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (JUN 2020) (41 U.S.C. 3509).

(ii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iii) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (Jul 2018) (Section 1634 of Pub. L. 115-91).

(iv) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (AUG 2020) (Section 889(a)(1)(A) of Pub. L. 115-232).

(v) 52.219-8, Utilization of Small Business Concerns (Oct 2018) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(vi) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).

(vii) 52.222-26, Equal Opportunity (Sep 2016) (E.O. 11246).

(viii) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(ix) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(x) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xi) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xii) 52.222-41, Service Contract Labor Standards (Aug 2018), (41 U.S.C. chapter 67).

(xiii) _____ (A) 52.222-50, Combating Trafficking in Persons (OCT 2020) (22 U.S.C. chapter 78 and E.O. 13627).

_____ (B) Alternate I (March 2, 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
(xiv) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Requirements (May 2014) (41 U.S.C. chapter 67.)

(xv) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Requirements (May 2014) (41 U.S.C. chapter 67)

(xvi) 52.222-54, Employment Eligibility Verification (Oct 2015) (E. O. 12989).

(xvii) 52.222-55, Minimum Wages Under Executive Order 13658 (Dec 2015) (E.O. 13658).

(xviii) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2017) (E.O. 13706).

(xix) (A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (Jan 2017) of 52.224-3.

(xx) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. 2302 Note).

(xxi) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations. (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxii) 52.247-64, Preference for Privately-Owned U.S. Flag Commercial Vessels (Feb 2006) (46 U.S.C. Appx 1241(b) and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial items a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.216-1 TYPE OF CONTRACT (APR 1984)

The Government contemplates award of a Firm Fixed Price with Cost Reimbursable materials and travel cost contract resulting from this solicitation.

(End of provision)

52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance

hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days before the contract expires.

(End of clause)

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 66 months.

(End of clause)

52.219-1 SMALL BUSINESS PROGRAM REPRESENTATIONS (MAR 2020)

(a) Definitions. As used in this provision--

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

Service-disabled veteran-owned small business concern--

(1) Means a small business concern--

(i) Not less than 51 percent of which is owned by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran.

(2) Service-disabled veteran means a veteran, as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16).

Small business concern means a concern, including its affiliates, that is independently owned and operated, not dominant in the field of operation in which it is bidding on Government contracts, and qualified as a small business under the criteria in 13 CFR Part 121 and the size standard in paragraph (b) of this provision.

Small disadvantaged business concern, consistent with 13 CFR 124.1002, means a small business concern under the size standard applicable to the acquisition, that--

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by--

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding $750,000 after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Veteran-owned small business concern means a small business concern--

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned small business concern means a small business concern--

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States.

(b)(1) The North American Industry Classification System (NAICS) code for this acquisition is ___ --[insert NAICS code].

(2) The small business size standard is ___ --[insert size standard].

(3) The small business size standard for a concern which submits an offer in its own name, other than on a construction or service contract, but which proposes to furnish a product which it did not itself manufacture (i.e., nonmanufacturer), is 500 employees.

(c) Representations. (1) The offeror represents as part of its offer that it [___] is, [___] is not a small business concern. (2) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it [___] is, [___] is not, a small disadvantaged business concern as defined in 13 CFR 124.1002.

(3) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it [___] is, [___] is not a women-owned small business concern.

(4) Women-owned small business (WOSB) concern eligible under the WOSB Program. [Complete only if the offeror represented itself as a women-owned small business concern in paragraph (c)(3) of this provision.] The offeror represents as part of its offer that--

(i) It [___] is, [___] is not a WOSB concern eligible under the WOSB Program, has provided all the required documents to the WOSB Repository, and no change in circumstances or adverse decisions have been issued that affects its eligibility; and

(ii) It [___] is, [___] is not a joint venture that complies with the requirements of 13 CFR part 127, and the representation in paragraph (c)(4)(i) of this provision is accurate for each WOSB concern eligible under the WOSB Program participating in the joint venture. [The offeror shall enter the name or names of the WOSB concern eligible under the WOSB Program and other small businesses that are participating in the joint venture: ___ --.] Each WOSB concern eligible under the WOSB Program participating in the joint venture shall submit a separate signed copy of the WOSB representation.

(5) Economically disadvantaged women-owned small business (EDWOSB) concern. [Complete only if the offeror represented itself as a women-owned small business concern eligible under the WOSB Program in (c)(4) of this provision.] The offeror represents as part of its offer that--

(i) It [___] is, [___] is not an EDWOSB concern eligible under the WOSB Program, has provided all the required documents to the WOSB Repository, and no change in circumstances or adverse decisions have been issued that affects its eligibility; and

(ii) It [___] is, [___] is not a joint venture that complies with the requirements of 13 CFR part 127, and the representation in paragraph (c)(5)(i) of this provision is accurate for each EDWOSB concern participating in the joint venture. [The offeror shall enter the name or names of the EDWOSB concern and other small businesses that are participating in the joint venture: ___ --.] Each EDWOSB concern participating in the joint venture shall submit a separate signed copy of the EDWOSB representation.

(6) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it [___] is, [___] is not a veteran-owned small business concern.

(7) [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(6) of this provision.] The offeror represents as part of its offer that it [___] is, [___] is not a service-disabled veteran-owned small business concern.

(8) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that--

(i) It [___] is, [___] is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR Part 126; and

(ii) It [___] is, [___] is not a HUBZone joint venture that complies with the requirements of 13 CFR Part 126, and the representation in paragraph (c)(8)(i) of this provision is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [The offeror shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: ___ --.] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

(d) Notice. Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, shall—

(1) Be punished by imposition of fine, imprisonment, or both;

(2) Be subject to administrative remedies, including suspension and debarment; and

(3) Be ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

52.219-14 LIMITATIONS ON SUBCONTRACTING (MAR 2020)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) Applicability. This clause applies only to--

(1) Contracts that have been set aside for small business concerns or 8(a) participants;

(2) Part or parts of a multiple-award contract that have been set aside for small business concerns or 8(a) participants;

(3) Orders set aside for small business concerns or 8(a) participants under multiple-award contracts as described in 8.405-5 and 16.505(b)(2)(i)(F); and

(4) Orders issued directly to small business concerns or 8(a) participants under multiple-award contracts as described in 19.504(c)(1)(ii).

(c) Limitations on subcontracting. By submission of an offer and execution of a contract, the Contractor agrees that in performance of the contract in the case of a contract for--

(1) Services (except construction). At least 50 percent of the cost of contract performance incurred for personnel shall be expended for employees of the concern.

(2) Supplies (other than procurement from a nonmanufacturer of such supplies). The concern shall perform work for at least 50 percent of the cost of manufacturing the supplies, not including the cost of materials.

(3) General construction. The concern will perform at least 15 percent of the cost of the contract, not including the cost of materials, with its own employees.

(4) Construction by special trade contractors. The concern will perform at least 25 percent of the cost of the contract, not including the cost of materials, with its own employees.

(d) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraph (b)(1) and (2) of this clause--

[Contracting Officer check as appropriate.]

___ By the end of the base term of the contract and then by the end of each subsequent option period; or

___ By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (b)(3) and (4) of this clause, by the end of the performance period for the order.

(End of clause)

52.219-18 NOTIFICATION OF COMPETITION LIMITED TO ELIGIBLE 8(A) PARTICIPANTS (MAR 2020)

(a) Offers are solicited only from small business concerns expressly certified by the Small Business Administration (SBA) for participation in the SBA's 8(a) Program and which meet the following criteria at the time of submission of offer--

(1) The Offeror is in conformance with the 8(a) support limitation set forth in its approved business plan; and

(2) The Offeror is in conformance with the Business Activity Targets set forth in its approved business plan or any remedial action directed by the SBA.

(b) By submission of its offer, the Offeror represents that it meets all of the criteria set forth in paragraph (a) of this clause.

(c) Any award resulting from this solicitation will be made to the Small Business Administration, which will subcontract performance to the successful 8(a) offeror selected through the evaluation criteria set forth in this solicitation.

(d) The shall notify the MICC Fort Gordon Contracting Officer in writing immediately upon entering an agreement (either oral or written) to transfer all or part of its stock.

(End of clause)

52.219-28 POST-AWARD SMALL BUSINESS PROGRAM REREPRESENTATION (MAY 2020)

(a) Definitions. As used in this clause--

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern means a concern, including its affiliates, that is independently owned and operated, not dominant in the field of operation in which it is bidding on Government contracts, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (d) of this clause. Such a concern is ``not dominant in its field of operation'' when it does not exercise a controlling or major influence on a national basis in a kind of business activity in which a number of business concerns are primarily engaged. In determining whether dominance exists, consideration shall be given to all appropriate factors, including volume of business, number of employees, financial resources, competitive status or position, ownership or control of materials, processes, patents, license agreements, facilities, sales territory, and nature of business activity.

(b) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts--

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, when the Contracting Officer explicitly requires it for an order issued under a multiple-award contract.

(d) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at https://www.sba.gov/document/support--table-size-standards.

(e) The small business size standard for a Contractor providing a product which it does not manufacture itself, for a contract other than a construction or service contract, is 500 employees.

(f) Except as provided in paragraph (h) of this clause, the Contractor shall make the representation(s) required by paragraph (b) and (c) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting office in writing within the timeframes specified in paragraph (b) of this clause, or with its offer for an order (see paragraph (c) of this clause), that the data have been validated or updated, and provide the date of the validation or update.

(g) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (f) or (h) of this clause.

(h) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it [ ] is, [ ] is not a small business concern under NAICS Code assigned to contract number .

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it [ ] is, [ ] is not, a small disadvantaged business concern as defined in 13 CFR 124.1002.

(3) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it [ ] is, [ ] is not a women-owned small business concern.

(4) Women-owned small business (WOSB) concern eligible under the WOSB Program. [Complete only if the Contractor represented itself as a women-owned small business concern in paragraph (h)(3) of this clause.] The Contractor represents that--

(i) It [ ] is, [ ] is not a WOSB concern eligible under the WOSB Program, has provided all the required documents to the WOSB Repository, and no change in circumstances or adverse decisions have been issued that affects its eligibility; and

(ii) It [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR part 127, and the representation in paragraph (h)(4)(i) of this clause is accurate for each WOSB concern eligible under the WOSB Program participating in the joint venture.

[The Contractor shall enter the name or names of the WOSB concern eligible under the WOSB Program and other small businesses that are participating in the joint venture: .] Each WOSB concern eligible under the WOSB Program participating in the joint venture shall submit a separate signed copy of the WOSB representation.

(5) Economically disadvantaged women-owned small business (EDWOSB) concern. [Complete only if the Contractor represented itself as a women-owned small business concern eligible under the WOSB Program in (h)(4) of this clause.] The Contractor represents that--

(i) It [ ] is, [ ] is not an EDWOSB concern eligible under the WOSB Program, has provided all the required documents to the WOSB Repository, and no change in circumstances or adverse decisions have been issued that affects its eligibility; and

(ii) It [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR part 127, and the representation in paragraph (h)(5)(i) of this clause is accurate for each EDWOSB concern participating in the joint venture. [The Contractor shall enter the name or names of the EDWOSB concern and other small businesses that are participating in the joint venture: .] Each EDWOSB concern participating in the joint venture shall submit a separate signed copy of the EDWOSB representation.

(6) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it [ ] is, [ ] is not a veteran-owned small business concern.

(7) [Complete only if the Contractor represented itself as a veteran-owned small business concern in paragraph (h)(6) of this clause.] The Contractor represents that it [ ] is, [ ] is not a service-disabled veteran-owned small business concern.

(8) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that--

(i) It [ ] is, [ ] is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and

(ii) It [ ] is, [ ] is not a HUBZone joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [The Contractor shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: .] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

[Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.222-42 STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES (MAY 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

THIS STATEMENT IS FOR INFORMATION ONLY: IT IS NOT A WAGE DETERMINATION
Employee Class Monetary Wage-Fringe Benefits

PER HR

GS 0340-13	Program Manager	$50.27 (General Schedule Job Grading Standard for Program Manager 0340)
GS 1712-09	Instructor/Writer	$28.56 (General Schedule Job Grading Standard for Instructor/Writer 1712)
GS 2210-12	Network System Administrator	$41.40 (General Schedule Job Grading Standard for Network System Administrator 2210)
GS 0303-07	Administrative Technician	$23.55 (General Schedule Job Grading Standard for Administrative Technician 0303)

(End of clause)

52.227-14 RIGHTS IN DATA--GENERAL (MAY 2014)

(a) Definitions. As used in this clause--

Computer database or database means a collection of recorded information in a form capable of, and for the purpose of, being stored in, processed, and operated on by a computer. The term does not include computer software.

Computer software--(1) Means (i) Computer programs that comprise a series of instructions, rules, routines, or statements, regardless of the media in which recorded, that allow or cause a computer to perform a specific operation or series of operations; and

(ii) Recorded information comprising source code listings, design details, algorithms, processes, flow charts, formulas, and related material that would enable the computer program to be produced, created, or compiled.

(2) Does not include computer databases or computer software documentation.

Computer software documentation means owner's manuals, user's manuals, installation instructions, operating instructions, and other similar items, regardless of storage medium, that explain the capabilities of the computer software or provide instructions for using the software.

Data means recorded information, regardless of form or the media on which it may be recorded. The term includes technical data and computer software. The term does not include information incidental to contract administration, such as financial, administrative, cost or pricing, or management information.

Form, fit, and function data means data relating to items, components, or processes that are sufficient to enable physical and functional interchangeability, and data identifying source, size, configuration, mating and attachment characteristics, functional characteristics, and performance requirements. For computer software it means data identifying source, functional characteristics, and performance requirements but specifically excludes the source code, algorithms, processes, formulas, and flow charts of the software.

Limited rights means the rights of the Government in limited rights data as set forth in the Limited Rights Notice of paragraph (g)(3) if included in this clause.

Limited rights data means data, other than computer software, that embody trade secrets or are commercial or financial and confidential or privileged, to the extent that such data pertain to items, components, or processes developed at private expense, including minor modifications.

Restricted computer software means computer software developed at private expense and that is a trade secret, is commercial or financial and confidential or privileged, or is copyrighted computer software, including minor modifications of the computer software.

Restricted rights, as used in this clause, means the rights of the Government in restricted computer software, as set forth in a Restricted Rights Notice of paragraph (g) if included in this clause, or as otherwise may be provided in a collateral agreement incorporated in and made part of this contract, including minor modifications of such computer software.

Technical data, means recorded information (regardless of the form or method of the recording) of a scientific or technical nature (including computer databases and computer software documentation). This term does not include computer software or financial, administrative, cost or pricing, or management data or other information incidental to contract administration. The term includes recorded information of a scientific or technical nature that is included in computer databases. (See 41 U.S.C. 116)

Unlimited rights means the rights of the Government to use, disclose, reproduce, prepare derivative works, distribute copies to the public, and perform publicly and display publicly, in any manner and for any purpose, and to have or permit others to do so.

(b) Allocation of rights. (1) Except as provided in paragraph (c) of this clause, the Government shall have unlimited rights in--

(i) Data first produced in the performance of this contract;

(ii) Form, fit, and function data delivered under this contract;

(iii) Data delivered under this contract (except for restricted computer software) that constitute manuals or instructional and training material for installation, operation, or routine maintenance and repair of items, components, or processes delivered or furnished for use under this contract; and

(iv) All other data delivered under this contract unless provided otherwise for limited rights data or restricted computer software in accordance with paragraph (g) of this clause.

(2) The Contractor shall have the right to--

(i) Assert copyright in data first produced in the performance of this contract to the extent provided in paragraph (c)(1) of this clause;

(ii) Use, release to others, reproduce, distribute, or publish any data first produced or specifically used by the Contractor in the performance of this contract, unless provided otherwise in paragraph (d) of this clause;

(iii) Substantiate the use of, add, or correct limited rights, restricted rights, or copyright notices and to take other appropriate action, in accordance with paragraphs (e) and (f) of this clause; and

(iv) Protect from unauthorized disclosure and use those data that are limited rights data or restricted computer software to the extent provided in paragraph (g) of this clause.

(c) Copyright--(1) Data first produced in the performance of this contract. (i) Unless provided otherwise in paragraph (d) of this clause, the Contractor may, without prior approval of the Contracting Officer, assert copyright in scientific and technical articles based on or containing data first produced in the performance of this contract and published in academic, technical or professional journals, symposia proceedings, or similar works. The prior,

express written permission of the Contracting Officer is required to assert copyright in all other data first produced in the performance of this contract.

(ii) When authorized to assert copyright to the data, the Contractor shall affix the applicable copyright notices of 17 U.S.C. 401 or 402, and an acknowledgment of Government sponsorship (including contract number).

(iii) For data other than computer software, the Contractor grants to the Government, and others acting on its behalf, a paid-up, nonexclusive, irrevocable, worldwide license in such copyrighted data to reproduce, prepare derivative works, distribute copies to the public, and perform publicly and display publicly by or on behalf of the Government. For computer software, the Contractor grants to the Government, and others acting on its behalf, a paid-up, nonexclusive, irrevocable, worldwide license in such copyrighted computer software to reproduce, prepare derivative works, and perform publicly and display publicly (but not to distribute copies to the public) by or on behalf of the Government.

(2) Data not first produced in the performance of this contract. The Contractor shall not, without the prior written permission of the Contracting Officer, incorporate in data delivered under this contract any data not first produced in the performance of this contract unless the Contractor--

(i) Identifies the data; and

(ii) Grants to the Government, or acquires on its behalf, a license of the same scope as set forth in paragraph (c)(1) of this clause or, if such data are restricted computer software, the Government shall acquire a copyright license as set forth in paragraph (g)(4) of this clause (if included in this contract) or as otherwise provided in a collateral agreement incorporated in or made part of this contract.

(3) Removal of copyright notices. The Government will not remove any authorized copyright notices placed on data pursuant to this paragraph (c), and will include such notices on all reproductions of the data.

(d) Release, publication, and use of data. The Contractor shall have the right to use, release to others, reproduce, distribute, or publish any data first produced or specifically used by the Contractor in the performance of this contract, except--

(1) As prohibited by Federal law or regulation (e.g., export control or national security laws or regulations);

(2) As expressly set forth in this contract; or

(3) If the Contractor receives or is given access to data necessary for the performance of this contract that contain restrictive markings, the Contractor shall treat the data in accordance with such markings unless specifically authorized otherwise in writing by the Contracting Officer.

(e) Unauthorized marking of data. (1) Notwithstanding any other provisions of this contract concerning inspection or acceptance, if any data delivered under this contract are marked with the notices specified in paragraph (g)(3) or (g)(4) if included in this clause, and use of the notices is not authorized by this clause, or if the data bears any other restrictive or limiting markings not authorized by this contract, the Contracting Officer may at any time either return the data to the Contractor, or cancel or ignore the markings. However, pursuant to 41 U.S.C. 4703, the following procedures shall apply prior to canceling or ignoring the markings.

(i) The Contracting Officer will make written inquiry to the Contractor affording the Contractor 60 days from receipt of the inquiry to provide written justification to substantiate the propriety of the markings;

(ii) If the Contractor fails to respond or fails to provide written justification to substantiate the propriety of the markings within the 60-day period (or a longer time approved in writing by the Contracting Officer for good cause shown), the Government shall have the right to cancel or ignore the markings at any time after said period and the data will no longer be made subject to any disclosure prohibitions.

(iii) If the Contractor provides written justification to substantiate the propriety of the markings within the period set in paragraph (e)(1)(i) of this clause, the Contracting Officer will consider such written justification and determine whether or not the markings are to be cancelled or ignored. If the Contracting Officer determines that the markings are authorized, the Contractor will be so notified in writing. If the Contracting Officer determines, with concurrence of the head of the contracting activity, that the markings are not authorized, the Contracting Officer will furnish the Contractor a written determination, which determination will become the final agency decision regarding the appropriateness of the markings unless the Contractor files suit in a court of competent jurisdiction within 90 days of receipt of the Contracting Officer's decision. The Government will continue to abide by the markings under this paragraph (e)(1)(iii) until final resolution of the matter either by the Contracting Officer's determination becoming final (in which instance the Government will thereafter have the right to cancel or ignore the markings at any time and the data will no longer be made subject to any disclosure prohibitions), or by final disposition of the matter by court decision if suit is filed.

(2) The time limits in the procedures set forth in paragraph (e)(1) of this clause may be modified in accordance with agency regulations implementing the Freedom of Information Act (5 U.S.C. 552) if necessary to respond to a request thereunder.

(3) Except to the extent the Government's action occurs as the result of final disposition of the matter by a court of competent jurisdiction, the Contractor is not precluded by paragraph (e) of the clause from bringing a claim, in accordance with the Disputes clause of this contract, that may arise as the result of the Government removing or ignoring authorized markings on data delivered under this contract.

(f) Omitted or incorrect markings. (1) Data delivered to the Government without any restrictive markings shall be deemed to have been furnished with unlimited rights. The Government is not liable for the disclosure, use, or reproduction of such data.

(2) If the unmarked data has not been disclosed without restriction outside the Government, the Contractor may request, within 6 months (or a longer time approved by the Contracting Officer in writing for good cause shown) after delivery of the data, permission to have authorized notices placed on the data at the Contractor's expense. The Contracting Officer may agree to do so if the Contractor--

(i) Identifies the data to which the omitted notice is to be applied;

(ii) Demonstrates that the omission of the notice was inadvertent;

(iii) Establishes that the proposed notice is authorized; and

(iv) Acknowledges that the Government has no liability for the disclosure, use, or reproduction of any data made prior to the addition of the notice or resulting from the omission of the notice.

(3) If data has been marked with an incorrect notice, the Contracting Officer may--

(i) Permit correction of the notice at the Contractor's expense if the Contractor identifies the data and demonstrates that the correct notice is authorized; or

(ii) Correct any incorrect notices.

(g) Protection of limited rights data and restricted computer software. (1) The Contractor may withhold from delivery qualifying limited rights data or restricted computer software that are not data identified in paragraphs (b)(1)(i), (ii), and (iii) of this clause. As a condition to this withholding, the Contractor shall--

(i) Identify the data being withheld; and

(ii) Furnish form, fit, and function data instead.

(2) Limited rights data that are formatted as a computer database for delivery to the Government shall be treated as limited rights data and not restricted computer software.

(3) [Reserved]

(h) Subcontracting. The Contractor shall obtain from its subcontractors all data and rights therein necessary to fulfill the Contractor's obligations to the Government under this contract. If a subcontractor refuses to accept terms affording the Government those rights, the Contractor shall promptly notify the Contracting Officer of the refusal and shall not proceed with the subcontract award without authorization in writing from the Contracting Officer.

(i) Relationship to patents or other rights. Nothing contained in this clause shall imply a license to the Government under any patent or be construed as affecting the scope of any license or other right otherwise granted to the Government.

(End of clause)

52.233-2 SERVICE OF PROTEST (SEP 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from Mission Installation Contracting Command (MICC) 271 Heritage Park Lane Bldg. 35200, Rm# 135 Fort Gordon, GA 30905.

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

https://www.acquision.gov/far/index.html

(End of clause)

252.201-7000 CONTRACTING OFFICER'S REPRESENTATIVE (DEC 1991)

(a) "Definition. Contracting officer's representative" means an individual designated in accordance with subsection 201.602-2 of the Defense Federal Acquisition Regulation Supplement and authorized in writing by the contracting officer to perform specific technical or administrative functions.

(b) If the Contracting Officer designates a contracting officer's representative (COR), the Contractor will receive a copy of the written designation. It will specify the extent of the COR's authority to act on behalf of the contracting

officer. The COR is not authorized to make any commitments or changes that will affect price, quality, quantity, delivery, or any other term or condition of the contract.

(End of clause)

252.227-7015 TECHNICAL DATA--COMMERCIAL ITEMS. (FEB 2014)

(a) Definitions. As used in this clause--

(1) Commercial item does not include commercial computer software.

(2) Covered Government support contractor means a contractor (other than a litigation support contractor covered by 252.204-7014) under a contract, the primary purpose of which is to furnish independent and impartial advice or technical assistance directly to the Government in support of the Government's management and oversight of a program or effort (rather than to directly furnish an end item or service to accomplish a program or effort), provided that the contractor--

(i) Is not affiliated with the prime contractor or a first-tier subcontractor on the program or effort, or with any direct competitor of such prime contractor or any such first-tier subcontractor in furnishing end items or services of the type developed or produced on the program or effort; and

(ii) Receives access to technical data or computer software for performance of a Government contract that contains the clause at 252.227-7025, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends.

(3) Form, fit, and function data means technical data that describes the required overall physical, functional, and performance characteristics (along with the qualification requirements, if applicable) of an item, component, or process to the extent necessary to permit identification of physically and functionally interchangeable items.

(4) The term item includes components or processes.

(5) Technical data means recorded information, regardless of the form or method of recording, of a scientific or technical nature (including computer software documentation). The term does not include computer software or data incidental to contract administration, such as financial and/or management information.

(b) License. (1) The Government shall have the unrestricted right to use, modify, reproduce, release, perform, display, or disclose technical data, and to permit others to do so, that--

(i) Have been provided to the Government or others without restrictions on use, modification, reproduction, release, or further disclosure other than a release or disclosure resulting from the sale, transfer, or other assignment of interest in the technical data to another party or the sale or transfer of some or all of a business entity or its assets to another party;

(ii) Are form, fit, and function data;

(iii) Are a correction or change to technical data furnished to the Contractor by the Government;

(iv) Are necessary for operation, maintenance, installation, or training (other than detailed manufacturing or process data); or

(v) Have been provided to the Government under a prior contract or licensing agreement through which the Government has acquired the rights to use, modify, reproduce, release, perform, display, or disclose the data without restrictions.

(2) Except as provided in paragraph (b)(1) of this clause, the Government may use, modify, reproduce, release, perform, display, or disclose technical data within the Government only. The Government shall not--

(i) Use the technical data to manufacture additional quantities of the commercial items; or

(ii) Release, perform, display, disclose, or authorize use of the technical data outside the Government without the Contractor's written permission unless a release, disclosure, or permitted use is necessary for emergency repair or overhaul of the commercial items furnished under this contract, or for performance of work by covered Government support contractors.

(3) The Contractor acknowledges that--

(i) Technical data covered by paragraph (b)(2) of this clause are authorized to be released or disclosed to covered Government support contractors;

(ii) The Contractor will be notified of such release or disclosure;

(iii) The Contractor (or the party asserting restrictions as identified in a restrictive legend) may require each such covered Government support contractor to enter into a non-disclosure agreement directly with the Contractor (or the party asserting restrictions) regarding the covered Government support contractor's use of such data, or alternatively, that the Contractor (or party asserting restrictions) may waive in writing the requirement for an non-disclosure agreement; and

(iv) Any such non-disclosure agreement shall address the restrictions on the covered Government support contractor's use of the data as set forth in the clause at 252.227-7025, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends. The non-disclosure agreement shall not include any additional terms and conditions unless mutually agreed to by the parties to the non-disclosure agreement.

(c) *Additional license rights*. The Contractor, its subcontractors, and suppliers are not required to provide the Government additional rights to use, modify, reproduce, release, perform, display, or disclose technical data. However, if the Government desires to obtain additional rights in technical data, the Contractor agrees to promptly enter into negotiations with the Contracting Officer to determine whether there are acceptable terms for transferring such rights. All technical data in which the Contractor has granted the Government additional rights shall be listed or described in a special license agreement made part of this contract. The license shall enumerate the additional rights granted the Government in such data.

(d) *Release from liability*. The Contractor agrees that the Government, and other persons to whom the Government may have released or disclosed technical data delivered or otherwise furnished under this contract, shall have no liability for any release or disclosure of technical data that are not marked to indicate that such data are licensed data subject to use, modification, reproduction, release, performance, display, or disclosure restrictions.

(e) Applicability to subcontractors or suppliers.

(1) The Contractor shall recognize and protect the rights afforded its subcontractors and suppliers under 10 U.S.C. 2320 and 10 U.S.C. 2321.

(2) Whenever any technical data related to commercial items developed in any part at private expense will be obtained from a subcontractor or supplier for delivery to the Government under this contract, the Contractor shall use this same clause in the subcontract or other contractual instrument, including subcontracts and other contractual instruments for commercial items, and require its subcontractorsor suppliers to do so, without alteration, except to identify the parties. This clause will govern the technical data pertaining to any portion of a commercial item that was developed exclusively at private expense, and the clause at 252.227-7013 will govern the technical data pertaining to any portion of a commercial item that was developed in any part at Government expense.

(End of clause)

252.232-7006 WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (DEC 2018)

(a) Definitions. As used in this clause—

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall—

(1) Have a designated electronic business point of contact in the System for Award Management at https://www.sam.gov; and

(2) Be registered to use WAWF at https://wawf.eb.mil/ following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at https://wawf.eb.mil/.

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

Invoice 2 & 1

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

Destination / Destination

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	*Data to be entered in WAWF*
Pay Official DoDAAC	HQ0490
Issue By DoDAAC	W91249
Admin DoDAAC**	W91249
Inspect By DoDAAC	W589GE
Ship To Code	____
Ship From Code	____
Mark For Code	____
Service Approver (DoDAAC)	____
Service Acceptor (DoDAAC)	W589GE
Accept at Other DoDAAC	____
LPO DoDAAC	____
DCAA Auditor DoDAAC	____
Other DoDAAC(s)	____

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

TBD

(End of clause)

ADDENDUM 52.212-1

ADDENDUM 52.212-1 Instructions to Offerors

Proposal Submittal and Inquiries.

1. Proposals shall be submitted prior to the closing date and time identified on SF 1449, to the following address:

Mission and Installation Contracting Command – Fort Gordon
Attn: Ms. Devin Knight
271 Heritage Park Lane, Bldg. 35200, Room 136
Fort Gordon, GA 30905
devin.knight.civ@mail.mil

2. Electronic submissions via facsimile will not be accepted. Offers shall be mailed through a commercial/Government carrier or hand carried. It is the offeror's responsibility to verify receipt of proposals prior to the closing date/time. Late proposals will not be accepted. The proposal shall be valid for one hundred and twenty (120) calendar days from the date of initial proposal submission.

3. Address all questions or concerns the offeror may have to the Contract Specialist (Ms. Devin Knight) and Contracting Officer (Mr. Jason King). The SUBJECT LINE shall be "W91249-21-R-0004, Question(s) – Company Name. . . ATTN: Ms. Devin Knight & Mr. Jason King." All questions regarding this solicitation shall be submitted in writing via email (email is the preferred method) **NLT 12:00PM** Eastern Standard Time (EST) on **18 December 2020** to the following:

Procuring Contracting Officer Name: Mr. Jason King
Email: jason.l.king1.civ@mail.mil
Contract Specialist Name: Ms. Devin Knight
Email: devin.knight.civ@mail.mil

The Government reserves the right not to respond to any questions received concerning this solicitation after the questions receipt date above. Accordingly, offerors are encouraged to carefully review all solicitation requirements and submit questions to the Government as early as possible.

4. Site Visit. The Government will not hold a site visit for this requirement.

B. General Instructions

1. The selection of a source for award purposes will be conducted utilizing source selection (negotiated) procedures as delineated in FAR Part 15.3. Offers will be evaluated using the criteria under Addendum 52.212-2, Evaluation Factors for Award. Noncompliance with the Request for Proposal (RFP) requirements may hamper the Government's ability to properly evaluate the proposal and may result in elimination of the proposal from further consideration for contract award.

2. The Offer. The submission of the documentation specified below will constitute the offeror's acceptance of the terms and conditions of the RFP, concurrence with the Performance Work Statement, and contract type.

3. It is the Government's intention to award **without** discussions. Offerors are encouraged to present their best technical proposal and prices in their initial proposal submission. However, in accordance with (IAW) FAR Part 15.306, should discussions become necessary, the Government reserves the right to hold them. If this occurs, a competitive range will be determined and offerors notified. The competitive range may be limited for purposes of efficiency IAW FAR Part 15.306 (c) (2).

4. Instructions outlined in paragraph C below, prescribe the format for the proposal and describe the approach for the development and presentation of proposal data. These instructions are designed to ensure the submission of necessary information to provide for the understanding and comprehensive evaluation of proposals.
5. If an offeror believes that the requirements in these instructions contain an error, an ambiguity, omission, or are otherwise deemed unsound, the offeror shall immediately notify the KO in writing with supporting rationale. The offeror is reminded that the Government reserves the right to award this effort based on the initial proposal, as received, without discussion.

6. In accordance with FAR Subpart 4.8 (Government Contract Files), the Government will retain one copy of all unsuccessful proposals. Unless the offeror requests otherwise, the Government will destroy extra copies of such unsuccessful proposals.

7. All referenced documents for this solicitation are available on the beta.SAM.gov website formerly (FedBizOpps) website at https://beta.sam.gov/.

8. Debriefings. The KO will promptly notify offerors of any decision to exclude them from the competitive range, whereupon they may request and receive a debriefing in accordance with FAR 15.505. The KO will notify offerors who were in the competitive range but were not selected for award in accordance with FAR 15.503(b). Upon such notification, unsuccessful offerors may request and receive a debriefing in accordance with the requirements of FAR 15.506.

C. Proposal Preparation Instructions

1. Offerer's proposal shall consist of four (4) volumes: (1) General, (2) Technical, (3) Past Performance and (4) Price.

2. Proposal Format

(a) Offerors shall submit an original and four (4) copies of each volume as noted in Table 2 of paragraph (c) below of their proposal

(b) Exceptions. Offerors are required to meet all solicitation requirements, such as terms and conditions, representations and certifications, and technical requirements, in addition to those identified as evaluation factors and subfactors. Failure to meet a requirement may result in an offer being ineligible for award. If the offeror finds it necessary to take exception to any of the requirements specified in this solicitation, the offeror shall clearly identify the applicable Volume and exceptions with a complete explanation of why the exception was taken, what benefit accrues to the Government (if any), and its impact, if any, on the performance, schedule, cost, and specific requirements of the solicitation. Each exception shall be specifically related to each paragraph and/or specific part of the solicitation to which the exception is taken. ***Offerors are cautioned that taking an exception may render the offer ineligible for award.*** This information shall be provided in the format below.

Table 1 - Solicitation Exceptions

Solicitation Document	Page/Paragraph	Requirement/Portion	Rationale & Impact
Section B, PWS, Addendum 52.212-1 and FAR 52.212-2 Evaluation--Commercial Items under Addendum - Evaluation Factors for Award etc.	Applicable Page and Paragraph Numbers	Identify the Requirement or Portion to which exception is taken	Describe the Rationale and Impact of the exception

(c) The proposals shall be organized into 4 volumes. Each volume of the proposal should be submitted as a separate attachment. A cover sheet should be included in each volume, clearly marked as to volume number, title, copy number, solicitation identification and the offeror's name. All text shall be single spaced paragraphs, Times New Roman Font, Font Size 11 printed in black Color Font, on white paper, in a Word document. (Black and white requirement does not apply to graphics, photos, etc., Company stationary and logos, spreadsheets, are unacceptable).

Printing shall be easily readable (12-pitch type or 10 point proportional spacing.)

Cross-references should be utilized to preclude unnecessary duplication of data between sections.

Table 2

Volume	Title	No. of Email Copies	NO. HARD COPIES	NO. OF DIGITAL COPIES (CD ROM)	Page Limits	DIGITAL FORMAT
I	General	1	1 Original + 4 copies	1 CD-ROM	No Limitations	MS Word or PDF
II	Technical	1	1 Original + 4 copies	1 CD-ROM	(20)	MS Word or PDF

III	Past Performance	1	1 Original + 4 copies	1 CD-ROM	3 pages per reference	MS Word or PDF
IV	Price	1	1 Original + 4 copies	1 CD-ROM	N/A	1 - MS Excel 1- PDF

(d) Proposal Limitation. The proposal shall not exceed the limits stated above. If the page limits are exceeded, the pages in excess of the limit shall be removed and returned, unread, to the offeror. The Government will not accept any changes to the contractor's proposal after the closing date of the solicitation (See FAR 15.208 for further information regarding late proposals). If discussions become necessary, page limitations may be placed on responses to Evaluation Notices (ENs). The specified page limits for EN responses will be identified in the letters forwarding the ENs to the offerors.

(e) Page Limit Includes: All appendices, charts, graphs, diagrams, tables, photographs, drawings, etc.

(f) Page Limit does not include covers for volumes, tables of contents, glossary of abbreviations and acronyms, indices, title pages, cross reference indices, and section dividers/tables if they are inserted solely to provide ease to the reader in locating parts/sections of the proposal. Pages will be counted if they contain any other information, i.e., diagrams, extraneous data, etc. Pages marked "This page intentionally left blank" will not be counted.

(g) What Counts As A Page? A page shall be an 8 ½ X 11" sheet of paper. When both sides of a sheet display printed material, it shall be counted as two pages. Letter size and spacing requirements for illustrations and tables can be at the discretion of the offeror but must be easily readable. Fold-outs will be counted as the appropriate number of pages based on an 8 ½" X 11" sheet of paper. Margins shall be at least 1 inch on the top and bottom and 3/4 inch on the side. The Contractor shall number each page in order to eliminate any confusion. In the event contractor creates an ambiguity in their numbering of pages, the Government may exercise its own discretion in counting pages. In the event contractor creates an ambiguity in their numbering of pages, the Government may exercise its own discretion in counting pages.

(h) Indexing. Each volume shall contain a more detailed table of contents to delineate the subparagraphs within that volume. Tab indexing shall be used to identify sections.

(i) Glossary of Abbreviations and Acronyms. Each volume shall contain a glossary of all abbreviations and acronyms used, with a definition for each.

3. Proposal Content

(a) **Volume I** – **GENERAL**.

Volume I must be clearly marked "VOLUME I – GENERAL Volume, RFP W91249-21-R-0004.

Offerors are required to submit a completed SF 1449 (Solicitation, Offer and Award**)** (including acknowledgment of Amendments), SF 1449 continuation sheet, Representation and Certifications, and other statements of Offerors. All final monetary extensions shall be in whole dollars only. Failure to follow the below Contract Proposal preparation instructions may cause your proposal to be deemed unacceptable by the Government. The General Volume shall be organized as follows and contain the identified information.

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TAB A, Exceptions/Assumptions (if required) - Identification and explanation of any exceptions or deviations. Additionally, any assumptions used in the proposal preparation must be identified.

TAB B, Solicitation, Offer and Award - The SF 1449 shall be submitted fully completed. The offeror is cautioned that the SF 1449 must contain an original signature in block 30a of the form. The contractor shall acknowledge any amendments to the RFP in accordance with the SF 1449 and with Addendum 52.212-1, Instruction to Offerors—Competitive Acquisition. The offeror shall provide the name, title and telephone number of the company/division point of contact regarding decisions made with respect to your proposal and who can obligate your company contractually. Also, identify those individuals authorized to negotiate with the Government.

TAB C, SF 1449 – Continuation Sheets -- Supplies or Services and Prices/Costs – This section shall be submitted fully completed and error free. It shall contain the offeror's prices for the established Contract Line Items Numbers (CLINS).

TAB D, 52.213-3 Alt I, Offeror Representations and Certifications – The offeror shall ensure this section is submitted thoroughly completed with all blocks in each certification/representation completed truthfully and completely.

(b) **Volume II** – Technical Experience

Volume II must be clearly marked "VOLUME II – TECHNICAL EXPERIENCE Volume, RFP W91249-21-R-0004.

(1) The Technical Volume shall be clear, concise, and include sufficient detail for effective evaluation and for substantiating the validity of stated claims in the Offeror's proposal. Legibility, clarity and coherence are very important. Responses will be evaluated against the Technical factors defined in Addendum 52.212-2, Evaluation Factors for Award. The proposal should not simply rephrase or restate the Government's requirements, but rather shall provide convincing rationale to address how the offeror intends to meet these requirements. Statements that the offeror understands, can, or will comply with the PWS (including referenced publications, technical data, etc.); statements paraphrasing the PWS or parts thereof (including applicable publications, technical data, etc.); and phrases such as "standard procedures will be employed" or "well known techniques will be used," etc., will be considered unacceptable**.** Offerors shall assume that the Government has no prior knowledge of their facilities and experience, and will base its evaluation on the information presented in the offeror's proposal.

Elaborate brochures or documentation, binding, detailed art work, or other embellishments are unnecessary and are not desired. **Volume II shall not include any pricing information.**

(2) The Technical Volume shall, at a minimum, be prepared in a form consistent with the Performance Work Statement (PWS) and the evaluation criteria for award set forth in Addendum 52.212-2 of this solicitation. The section shall be prepared in an orderly format and in sufficient detail to enable the Government to make a thorough evaluation of the contractor's technical competence and ability to comply with the contract task requirements specified in the PWS. The offeror shall address as specifically as possible the actual methodology you would use for accomplishing the PWS tasks. The volume shall be organized according to the following general:

- Table of Contents
- List of Table and Drawings
- Cross Reference Matrix
- Exceptions/Assumptions (Identification and explanation of any exceptions or deviations). Additionally, identify any assumptions used in preparing the proposal.

Factor 1: Technical Capability consists of two Subfactors:

Sub-factor 1A – Technical Ability
Sub-factor 1B – Staffing, Recruitment, Retention, and Management Approach

Subfactor 1A: Technical Ability

The Offeror's overall technical approach shall demonstrate its knowledge and understanding of the magnitude and complexity of this requirement and its capability to perform all tasks in the Performance Work Statement. The Offeror's technical approach shall also concisely and clearly address the Offeror's approach to plan, organize, control and perform the major performance objectives below:

- Provide classroom instruction with qualified and certified instructors
- Provide lesson plans/training materials development and updates
- Provide Program Management Support with qualified and certified personnel
- Provide Administrative Support for ATRRS and travel coordination
- Provide Network System Administrator Support with qualified and certified personnel
- Provide deliverables in accordance with the PWS

Subfactor 1B: Staffing, Recruitment, Retention, and Management Approach

The Offeror's management approach shall describe the extent to which subcontractors and/or teaming partners (hereafter referred to as "personnel") shall be used to perform this requirement by task and by percentage of the costs of service performed. The Offeror shall also describe procedures for managing subcontractors to include identification of interface points, assignment

of management responsibilities to any subcontractors, and procedures for both technical and managerial problem resolution to ensure all requirement are met. The Offeror's management approach shall address its procedures to monitor and manage performance by all personnel, across numerous geographic locations, to ensure timely quality work and to control costs. The Offeror's staffing approach shall identify its proposed staffing (by number of personnel, by labor categories and by location) and any plans to cross-utilize or rely on reach-back, part-time or temporary personnel to perform this requirement. The Offeror's staffing plan shall describe its plans for recruiting and retaining personnel with all of the qualifications necessary to perform this requirement. The Offeror shall provide the names of all personnel performing under this contract and proof of their certifications, security clearances and other qualifications required for their designated positions. The Offeror's staffing, recruitment, retention, and management approach shall describe the methods by which the Offeror shall recruit and retain highly qualified personnel. A sound staffing and management approach to perform program management, address its procedures to plan, organize, control, and perform the major performance objectives, and manage and monitor all personnel to ensure all PWS requirements are met. In addition, the offeror's staffing, recruitment, retention, and management approach shall address the following:

The Offeror shall provide letters of intent (signed within 60 days of proposal submission) and resumes for all personnel. Resumes and Letters of Commitment are not included in the page count. Résumés must conform to the following format:

(1) Name
(2) Education (Degree/discipline/year attained, educational institution)
(3) Certifications (certification member ID; expiration date)
(4) Security Clearance (List clearance(s) currently held)
(5) Valid Passport (Y/N)
(6) Proposed Labor Category
(7) Experience
(8) Present Position

a. Company and title of position
b. Dates of employment (month/year to month/year or to "present")
c. Brief description of duties and responsibilities, including supervisory experience
d. Number and type of personnel supervised

a. Provide an Organizational Chart, which shall clearly reflect positions and address lines of communication, decision making authority, and problem resolution. The Offeror shall delineate the organization's chain of command and delegations of authority relating to the execution of the work required in the Performance Work Statement. Describe and outline the strategy(s) and method(s) that will utilized to locate and actively recruit highly qualified and experienced personnel and manage personnel with the required knowledge, skills, education, experience, and applicable position descriptions, certifications, training (to include refresher training), security clearances, and licenses required to support specific positions in accordance with the PWS and necessary to perform and manage contract requirements.

b. Describe and outline the strategy that will be utilized to effectively account for challenges in locating, relocating, and retaining personnel that are qualified to meet all requirements and a recruitment strategy(s) to motivate personnel to relocate to Fort Gordon area and work for the Government.

c. Address how risk will be mitigated and/or eliminated from a technical, staffing, and management perspective.

(c) **Volume III** - Past Performance.

Volume III must be clearly marked "VOLUME III – Past Performance, RFP W91249-21-R-0004.

(1) The Past Performance evaluation will be accomplished by Offeror's submission in identifying recent and relevant performance/experience information from at least three (3) but no more than five (5) Federal, State, or Local Government task orders or contracts that the Offeror has performed. Recent is defined as within the past three (3) calendar years from the closing date of this RFP. Relevant is defined as work performed that is similar to that anticipated by the PWS. Each narrative shall also include contract number and amount: the name, telephone number, and email address of the Government representative who can verify past performance. The Past Performance evaluation will be accomplished by reviewing aspects of an Offeror's recent and relevant Past Performance, focusing on and targeting performance which is relevant to the effort as it directly relates to the work being procured under this solicitation and as defined in Addendum 52.212-2.

Past Performance information described herein is required on the offeror and all subcontractors, teaming partners, and/or joint venture partners proposed to perform 51% of the proposed effort based on the total proposed price. The offeror shall submit, along with the information required in this paragraph, a consent letter, executed by each subcontractor, teaming partner, and/or joint venture partner, authorizing release of adverse past performance information to the offeror so the offeror can respond to such information. For each identified effort for a commercial customer, the offeror shall also submit a client authorization letter, authorizing release to the Government of requested information on the offeror's performance.

1. The offeror is requested to submit the Past Performance by the scheduled due date, to the Contracting Officer at the address specified in Addendum 52.212-1.

2. The offeror shall include documentation regarding their relevant past performance as it directly relates to the work being procured under this solicitation. The offeror SHALL NOT go back any farther than 3 years for services for the submitted data. The past performance data shall document a successful history of past contract performance.

3. In conducting the Past Performance evaluation, the Government reserves the right to use both the information provided in the offeror's Past Performance Volume and information obtained from other sources, such as the Past Performance Information Retrieval System (PPIRS) or similar systems, Defense Contract Management Agency (DCMA) and commercial sources.

Offerors are reminded that both independent data and data provided by offerors in their proposals may be used by the Government to evaluate offeror past performance. However, the burden of providing thorough, complete, and current past performance information as requested in this paragraph remains with the offerors. Proposals that do not contain the information requested by this paragraph risk rejection or a less than acceptable performance rating by the Government. All past performance comments received will be taken into account and could affect the overall rating. The overall past performance evaluation is a subjective decision based on the whole of all data received. In the case of an offeror without a record of relevant past performance or for whom information on past performance is not available or so sparse that no meaningful past performance rating can be reasonably assigned, the offeror may not be evaluated favorably or unfavorably on past performance (see FAR 15.305 (a)(2)(iv)). Therefore, the offeror shall be determined to have unknown past performance. In the context of acceptability/unacceptability, "unknown" shall be considered "acceptable."

4. Submission Requirements. The offeror shall submit a Past Performance Volume containing the following:

- **Table of Contents**

- **Summary Page** describing the role of the offeror and each subcontractor, teaming partner, and /or joint venture partner that the offeror is required to provide Past Performance Specific Relevant Contract Reference Sheets for the past performance experience in accordance with **Attachment 2.**

- **Consent Letters** executed by each subcontractor, teaming partner, and/or joint venture partner, authorizing the release of past performance information so the offeror can respond to such information. A sample consent letter is attached as **Attachment 1.**

- **Client Authorization Letters** for each identified effort for a commercial customer authorizing release to the Government of requested information on the offeror's performance.

- **Organization Structure Change History**— Organizational Structure Change History. Many companies have acquired, been acquired by, or otherwise merged with other companies, and/or reorganized their divisions, business groups, subsidiary companies, etc. In many cases, these changes have taken place during the time of performance of relevant present or past efforts or between conclusion of recent past efforts and this source selection. As a result, it is sometimes difficult to determine what past performance is relevant to this acquisition. To facilitate this relevancy determination, include in this proposal volume a "roadmap" describing all such changes in the organization of your company. As part of this explanation, show how these changes impact the relevance of any efforts you identify for past performance evaluation/performance confidence assessment. Since the Government intends to consider present and past performance information provided by other sources as well as that provided by the offeror(s), your "roadmap" should be both specifically applicable to

the efforts you identify and general enough to apply to efforts on which the Government receives information from other sources.

- **Specific Relevant Contracts Format - Sheets** in accordance with **Attachment 2** and are limited to 3 pages per reference. The offeror shall provide documentation outlining the offeror's past performance with contracts, as a prime or major subcontractor, which is the same or similar in nature, size, and complexity to the services being procured under this Solicitation. The submittal shall include rationale supporting your assertion of relevance and how it was determined that the work performed previously was the same or similar in nature, size, and complexity to the work specified by this solicitation. Offerors are required to explain what aspects of the contracts are deemed relevant to the proposed effort, and to what aspects of the proposed effort they relate.

Past Performance Questionnaire - Attachment 3, Past Performance Questionnaire. For the contracts identified on each Specific Relevant Contract Reference, the offeror shall forward a copy of the Past Performance Questionnaire to the points of contact responsible for monitoring performance under such contracts. The points of contact shall return the questionnaires directly to Devin Knight at devin.knight.civ@mail.mil prior to the closing of the RFP. Any questionnaires not returned directly to the KO will not be reviewed and evaluated. The information contained in the questionnaires will be used to evaluate the offeror's past performance. New entities that have no past customers shall annotate on the Summary Page that they have had no previous clients and that the minimum number of questionnaires cannot be provided.

(d) Volume IV - Price – The offeror shall complete the Pricing Worksheet (Attachment 4 and SF1449 – Continuation Sheets -- Supplies or Services and Prices/Costs section of the solicitation. Offerors shall use Government provided Not-to-Exceed estimates for ODC CLINs. Offerors shall submit a fully completed price breakdown in the format specified in Attachment 4. A separate breakdown shall be submitted for each year and these shall be rolled up to the contract or summary level, which shall be traceable to the amounts inserted in Schedule B. All labor proposed on the previously discussed breakdown sheets shall be linked to this labor summary. The offerors shall provide compensation packages for all employees. Compensation package will be evaluated to ensure the adequacy of retention and recruitment.

All information relating to the proposed price must be included in both hard copy and electronic format. Electronic versions of the price proposal shall be submitted in Microsoft Excel as further delineated below, and files should not be read only or password protected. All Excel formulas, lookup tables, and links should be intact, and no links should exist to files not included with the submission. Excel workbooks should not contain hidden spreadsheets. PDF or flat files will not be considered adequate. The electronic version will take precedence for any differences noted between the hard and electronic versions of an offeror's proposal. Failure to comply with these formatting requirements may result in rejection of your proposal. Offerors' submittals shall be free of viruses, Trojans, spyware, and other malicious code for which appropriate detection and removal/quarantine software exists.

Certified cost or pricing data is not anticipated for the award of contracts due to expected competition; however, the Government reserves the right to request such information should it become necessary consistent with FAR Subpart 15.4, Contract Pricing. Data Other Than Certified Cost or Pricing Data is required to determine the proposed price fair and reasonable.

Contractor shall fill out the attached Pricing Worksheet (Attachment 4). The Price proposal for all the CLINs contained in Schedule B, Pricing Schedule shall contain two Sections: the Price Narrative Section and the Price Proposal Section.

Price Narrative portion in MS Word or compatible format, with a Table of Contents. The price narrative shall provide the basis of estimate for all major elements of the price proposed. The Price Narrative Section shall contain all the narrative explanations used in deriving calculated price (including appropriate references to individual spreadsheets as they appertain). These narratives shall clearly explain the methodologies, calculations, exceptions and assumptions used in developing price.

ADDENDUM 52.212-2

ADDENDUM 52.212-2 Evaluation Factors for Award

a. Basis for Contract Award

(1) This is a best value source selection conducted in accordance with Federal Acquisition Regulation (FAR) 15.3, Source Selection, as supplemented by the Defense Federal Acquisition Regulation Supplement (DFARS), and the Army Federal Acquisition Regulation Supplement (AFARS). Award will be made to a single offeror who is deemed responsible in accordance with the Federal Acquisition Regulation (FAR), whose proposal conforms to the solicitation requirements, and whose proposal, judged by an overall assessment of the evaluation criteria and other considerations specified in this solicitation, represents the Lowest Priced Technically Acceptable offer.

(2) Trade-offs between cost/price and non-cost/price factors are not permitted. Unreasonably high/ unrealistically low, unbalanced, inaccurate or incomplete price proposals, may be the grounds for eliminating a proposal from competition.

The Government will evaluate proposed prices for reasonableness using price analysis techniques. Proposed prices evaluated as unreasonable may be grounds for eliminating a proposal from competition.

b. Award for All of the Work. The Government intends to award one (1) as a result of this solicitation. Offers received for less than the stated number of items listed in the Bid Schedule will be considered ineligible for award. As set forth in FAR 52.215-1 (f)(4), the Government intends to evaluate proposals and award a contract without discussions with offerors (except clarifications as described in FAR 15.306(a), Clarifications and award without discussions). Therefore, the offeror's initial proposal should contain the offeror's best terms from a cost or

price and technical standpoint. The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. In the event that discussions are held, a competitive range determination will be made. If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

c. Evaluation Criteria

1) Evaluation criteria consist of factors and subfactors. The proposals will be evaluated under the following three (3) evaluation factors:

Factor 1: Technical Capability
Subfactor 11A: Technical Ability
Subfactor 21B: Management Approach & Staffing Approach
Factor 2: Past Performance
Factor 3: Price

2) **Factor 1 - Technical Capability.** The Technical Factor evaluation provides an assessment of the offeror's capability to satisfy the Government's minimum requirements.

Factor 1 – Technical Capability consist of two (2) Subfactors:
Subfactor 1A: Technical Ability
Subfactor 1B: Staffing, Recruitment, Retention, and Management Approach

Subfactor 1A: Technical Ability

The proposal clearly demonstrates that the Offeror has a very good understanding of the entire requirement; has a very good methodology to perform all tasks successfully and on time, and has a very efficient, effective and sound approach to plan, organize, control and perform the major performance objectives. The proposal's overall technical approach shall have little potential to disrupt or degrade performance or to increase costs.

Subfactor 1B: Staffing, Recruitment, Retention, and Management Approach

The proposal clearly demonstrates that the Offeror has very sound procedures to monitor and manage performance of all personnel, in all locations, to ensure timely quality work and to control costs. The proposal clearly demonstrates that the Offeror has offered properly qualified personnel in the appropriate labor categories to perform this requirement, has a very sound recruiting and retention plan to ensure the continued availability of properly qualified personnel and has a very efficient, effective and sound staffing approach that ensures an appropriate number of personnel are available to perform this requirement. The proposal's overall management and staffing approach shall have little potential to disrupt or degrade performance or to increase costs.

The Technical Capabilities sub-factors will be assigned an adjectival rating of Acceptable or Unacceptable. The Subfactor ratings will be used to determine an overall rating for the factor. If any Subfactor receives an Unacceptable rating, the overall Technical Capabilities factor will be rated Unacceptable.

The Technical Factors will receive one of the adjectival ratings defined below. The Subfactor ratings will be used to determine an overall rating for the factor.

Table A-1. Technical Acceptable/Unacceptable Ratings	
Rating	**Description**
Acceptable	Proposal clearly meets the minimum requirements of the solicitation.
Unacceptable	Proposal does not clearly meet the minimum requirements of the solicitation.

(3) Factor 2 - Past Performance. The Past Performance evaluation will assess the offeror's probability of meeting the solicitation's requirements as indicated by that offeror's record of past performance. Past Performance is assessed at the factor level after evaluating aspects of the offeror's recent past performance and focusing on performance that is relevant to the services being procured under this solicitation. Offerors are cautioned that in conducting the performance risk assessment, the Government may use data provided in the offeror's proposal and data obtained from other sources, such as the Past Performance Information Retrieval System (PPIRS) or similar systems and State Department Watch Lists. Past performance areas of evaluation include:

- Quality of Service
- Schedule
- Cost Control
- Customer Satisfaction

(a) Each offeror will receive a performance confidence assessment rating based on the Offeror's recent past performance, focusing on performance that is relevant to the Contract requirements.

(b) Recency Assessment. An assessment of the past performance information will be made to determine if it is recent. To be recent, the effort must be ongoing or must have been performed during the past (3) three years from the date of issuance of this solicitation. Past performance information that fails this condition will not be evaluated.

(c) Relevancy Assessment. To be relevant, the effort must be similar in nature of work, size, and complexity. The Government will conduct an in-depth evaluation of all recent performance information obtained to determine if it is the same or similar in nature of work, size, dollar value, and complexity to the services/products being procured under this solicitation. Recent past performance is defined as not more than (3) three years from the RFP release date; relevant in terms of similar nature of work, size and complexity.

A relevancy determination of the offeror's (including joint venture partner(s) and major and critical subcontractor(s)) past performance will be made. In determining relevancy for individual contracts, consideration will be given to the effort, or portion of the effort, being proposed by the offeror, teaming partner, or subcontractor whose contract is being reviewed and evaluated. In establishing what is relevant for the acquisition, consideration should be given to what aspects of an offeror's contract history would give the most confidence that the offeror will satisfy the current procurement. The past performance information provided in the proposal and obtained from other sources will be used to establish the relevancy of past performance.

(d) The Past Performance Evaluation Team will review this past performance information and determine the quality and usefulness as it applies to performance confidence assessment.

(e) Assigning Ratings. The Past Performance Factor will be assigned one of the ratings defined below.

Table 4. Past Performance Evaluation Ratings	
Rating	**Description**
Acceptable	Based on the offeror's performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort, or the offeror's performance record is unknown.
Unacceptable	Based on the offeror's performance record, the Government has no reasonable expectation that the offeror will be able to successfully perform the required effort.

(f) Offerors without a record of relevant past performance or for whom information on past performance is not available or so sparse that no meaningful past performance rating can be reasonably assigned, the offeror may not be evaluated favorably or unfavorably on past performance. Therefore, the offeror shall be determined to have unknown past performance. In the context of acceptability/unacceptability, "unknown" shall be considered "acceptable."

(4) Factor 4 – Price. Price will not be scored or rated. Evaluation of price will be performed using one or more of the price analysis techniques in FAR 15.404-1(b). Through these techniques the Government will determine whether prices are reasonable, complete and balanced. **Total compensation plans for proposed professional employees shall be evaluated as prescribed by FAR Clause 52.222-46.**

Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s). As part of price evaluation, the government will evaluate its option to extend services (see FAR Clause 52.217-8) by adding one-half of the offeror's final option period price to the offeror's total price. Thus, the offeror's total price for the purpose of evaluation will include the base period, 1st option, 2nd option, 3rd option, 4th option, and 1/2 of the 4th option. Offerors are not required to enter a price for the six-month period.

Unbalanced Pricing may be evaluated in accordance with FAR 15.404-1(g), as applicable, to assess potential performance risk which could result in unreasonably high prices

Definitions.

Reasonableness. A price is reasonable if, in its nature and amount, it does not exceed that which would be incurred by a prudent person in the conduct of competitive business.

Completeness/Accuracy. The offeror's proposal is in compliance with the Price Volume instructions in the solicitation."